

CONSTITUTIONAL LAW IN THE CRIMINAL JUSTICE SYSTEM



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Licensing

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About This Book

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CHAPTER OVERVIEW

1: Introduction

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1.1: What Is This Book?

Introduction

This book introduces criminal procedure law in the United States, with a focus on the “investigation” stage of the criminal justice system. Specifically, the book focuses on legal constraints placed upon police and prosecutors, constraints largely derived from Supreme Court interpretations of the Fourth, Fifth, and Sixth Amendments to the Constitution. Major topics include searches and seizures, warrants and when they are required, interrogations, witness identifications of suspects, and the right to counsel during various stages of investigation and prosecution.

Additionally, the legal issues covered in this book relate to some of the most intense ongoing political and social debates throughout the United States. The law governing stop-and-frisk procedures, for example, is not mere trivia. These issues affect the lives of real people. The reliability of eyewitness identifications affects the likelihood of wrongful convictions, a phenomenon persons of all political persuasions oppose. In short, policing and prosecution impact everyone in America, and an informed citizen should understand the primary arguments raised in major controversies in procedural criminal law.

Certainly, understanding the holdings of major cases is essential to more nuanced participation in these debates, so this book devotes substantial space to Supreme Court opinions, which have been edited for length. (To save space, most internal citations, as well as portions of court opinions, have been removed without using ellipses to indicate the edits.) Also, the book aims to go beyond the information available in majority opinions, concurrences, and dissents. To do so, it includes supplementary material on developments in law and policy. For example, advances in technology raise questions about precedent concerning what counts as a “search” under Fourth Amendment law. The book also provides perspectives on the practical implications of Supreme Court decisions, perspectives often given little attention by the Justices. For example, state courts have grappled with scientific evidence about witness reliability that the Supreme Court has not yet addressed to resolve due process challenges related to identifications.

Further, in addition to helping students identify situations in which constitutional rights may have been violated, the book explores what remedies are available for different violations. For a criminal defendant, the most desirable remedy will normally be the exclusion of evidence obtained through illegal means (such as drugs found in a defendant’s car or home during an unlawful search). Contrary to common misconceptions among the general public, however, not all criminal procedure law violations result in the exclusion of evidence. Students will read the leading cases on the exclusionary rule that governs evidence admissibility, confronting arguments about when the remedy of exclusion—which quite often requires that a guilty person avoid conviction—is justified by the need to encourage law enforcement to respect the constitutional protections involved in searches, seizures, interrogations, and so on.

Outline of the Book

After the first chapter, the book will proceed as follows: First, we will examine the Fourth Amendment, beginning with considering what counts as a “search” in Fourth Amendment cases. After studying the concepts of probable cause and reasonable suspicion, we will discuss warrants, including what police must do to obtain them, when they are required, and when the Supreme Court has said police may conduct searches and seizures without warrants. Having spent about a third of the book on searches, we will turn to seizures, including arrests and “stop and frisk.”

Around the halfway point of the book, we will move from the Fourth Amendment and begin our study of interrogations, examining how the Court has used the Fifth, Sixth, and Fourteenth Amendments to regulate police questioning of suspects. This portion of the book will cover the Due Process Clauses, the *Miranda* Rule, and regulations arising from the right to counsel.

Having studied “substantive” criminal procedure rules at some length—learning what the Court has told police officers they can and cannot do—we will turn to the remedies available when these rules are broken. Primarily, we will focus on the exclusionary rule, a judicially created remedy that prevents prosecutors from using certain evidence obtained illegally. We will also consider when money damages are available as a remedy for violations of criminal procedure rules.

Near the end of the book, we will study the criminal defendant’s right to the assistance of counsel, which is guaranteed by the Sixth Amendment. In particular, we will learn when the state must provide counsel and how effective counsel must be to satisfy the constitutional guarantee.

Then we will study identification procedures, including how police can avoid mistaken identifications by victims and other witnesses, along with the limited requirements that have been imposed by the Supreme Court.

As the book ends, we will consider some new challenges presented by terrorism, such as torture, and by technological advances, such as electronic surveillance.

Next

The next section introduces why this area of constitutional law is so important.

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1.2: Why the Law of Criminal Procedure Matters

Why is the law of criminal procedure so important? First, *all* employees of the government—including criminal justice professionals, of course—are required to know the law.^[1] This obligation not only includes codified law but also the judicial opinions and cases that interpret or evaluate the constitutionality of codified law. Thus, the point is not that public servants should know the law; the point is that public servants must know the law.

Second, the consequence of not knowing or otherwise abiding by the law can lead to atrocious outcomes. A good illustration is the U.S. Supreme Court case of *Brown v. Mississippi*. In this 1936 unanimous decision, the Court reviewed a case that demonstrates a few things that can happen when law enforcement officers, prosecutors, and judges have little regard for individuals and their (i.e., our) constitutional rights.

Supreme Court of the United States

Ed Brown v. Mississippi

297 U.S. 278 (1936)

MR. CHIEF JUSTICE HUGHES delivered the [unanimous] opinion of the Court.

[Issue and Procedural History]

The question in this case is whether convictions, which rest solely upon confessions shown to have been extorted by officers of the state by brutality and violence, are consistent with the due process of law required by the Fourteenth Amendment of the Constitution of the United States.

Petitioners were indicted for the murder of one Raymond Stewart, whose death occurred on March 30, 1934. They were indicted on April 4, 1934, and were then arraigned and pleaded not guilty. Counsel were appointed by the court to defend them. Trial was begun the next morning and was concluded on the following day, when they were found guilty and sentenced to death.

Aside from the confessions, there was no evidence sufficient to warrant the submission of the case to the jury. After a preliminary inquiry, testimony as to the confessions was received over the objection of defendants' counsel. Defendants then testified that the confessions were false and had been procured by physical torture. The case went to the jury with instructions, upon the request of defendants' counsel, that if the jury had reasonable doubt as to the confessions having resulted from coercion, and that they were not true, they were not to be considered as evidence. On their appeal to the Supreme Court of the State, defendants assigned as error the inadmissibility of the confessions. The judgment was affirmed.

Defendants then moved in the Supreme Court of the State for a new trial on the ground that all the evidence against them was obtained by coercion and brutality known to the court and to the district attorney, and that defendants had been denied the benefit of counsel or opportunity to confer with counsel in a reasonable manner. The motion was supported by affidavits. At about the same time, defendants explicitly challeng[ed] the proceedings of the trial, in the use of the confessions and with respect to the alleged denial of representation by counsel, as violating the due process clause of the Fourteenth Amendment of the Constitution of the United States. The state court considered the federal question, and decided it against defendants' contentions. Two judges dissented. We granted a writ of certiorari.

The grounds of the [state] Supreme Court's decision were (1) that immunity from self-incrimination is not essential to due process of law; and (2) that the failure of the trial court to exclude the confessions after the introduction of evidence showing their incompetency, in the absence of a request for such exclusion, did not deprive the defendants of life or liberty without due process of law; and that even if the trial court had erroneously overruled a motion to exclude the confessions, the ruling would have been mere error reversible on appeal, but not a violation of constitutional right.

The opinion of the state court did not set forth the evidence as to the circumstances in which the confessions were procured. That the evidence established that they were procured by coercion was not questioned. The state court said: 'After the state closed its case on the merits, the appellants, for the first time, introduced evidence from which it appears that the confessions were not made voluntarily but were coerced.'

[Facts]

There is no dispute as to the facts upon this point, and as they are clearly and adequately stated in the opinion of the two dissenting judges, showing both the extreme brutality of the measures to extort the confessions and the participation of the state authorities,

we quote this part of the dissenting opinion in full, as follows:

The crime with which these defendants, all ignorant [Black people], are charged, was discovered about 1 o'clock p.m. on Friday, March 30, 1934. On that night one Dial, a deputy sheriff, accompanied by others, came to the home of Ellington, one of the defendants, and requested him to accompany them to the house of the deceased, and there a number of white men were gathered, who began to accuse the defendant of the crime. Upon his denial they seized him, and with the participation of the deputy they hanged him by a rope to the limb of a tree, and, having let him down, they hung him again, and when he was let down the second time, and he still protested his innocence, he was tied to a tree and whipped, and, still declining to accede to the demands that he confess, he was finally released, and he returned with some difficulty to his home, suffering intense pain and agony. The record of the testimony shows that the signs of the rope on his neck were plainly visible during the so-called trial. A day or two thereafter the said deputy, accompanied by another, returned to the home of the said defendant and arrested him, and departed with the prisoner towards the jail in an adjoining county, but went by a route which led into the state of Alabama; and while on the way, in that state, the deputy stopped and again severely whipped the defendant, declaring that he would continue the whipping until he confessed, and the defendant then agreed to confess to such a statement as the deputy would dictate, and he did so, after which he was delivered to jail.

The other two defendants, Ed Brown and Henry Shields, were also arrested and taken to the same jail. On Sunday night, April 1, 1934, the same deputy, accompanied by a number of white men, one of whom was also an officer, and by the jailer, came to the jail, and the two last named defendants were made to strip and they were laid over chairs and their backs were cut to pieces with a leather strap with buckles on it, and they were likewise made by the said deputy definitely to understand that the whipping would be continued unless and until they confessed, and not only confessed, but confessed in every matter of detail as demanded by those present; and in this manner the defendants confessed the crime, and, as the whippings progressed and were repeated, they changed or adjusted their confession in all particulars of detail so as to conform to the demands of their torturers. When the confessions had been obtained in the exact form and contents as desired by the mob, they left with the parting admonition and warning that, if the defendants changed their story at any time in any respect from that last stated, the perpetrators of the outrage would administer the same or equally effective treatment.

Further details of the brutal treatment to which these helpless prisoners were subjected need not be pursued. It is sufficient to say that in pertinent respects the transcript reads more like pages torn from some medieval account than a record made within the confines of a modern civilization which aspires to an enlightened constitutional government.

All this having been accomplished, on the next day, that is, on Monday, April 2, when the defendants had been given time to recuperate somewhat from the tortures to which they had been subjected, the two sheriffs, one of the county where the crime was committed, and the other of the county of the jail in which the prisoners were confined, came to the jail, accompanied by eight other persons, some of them deputies, there to hear the free and voluntary confession of these miserable and abject defendants. The sheriff of the county of the crime admitted that he had heard of the whipping but averred that he had no personal knowledge of it. He admitted that one of the defendants, when brought before him to confess, was limping and did not sit down, and that this particular defendant then and there stated that he had been strapped so severely that he could not sit down, and, as already stated, the signs of the rope on the neck of another of the defendants were plainly visible to all. Nevertheless, the solemn farce of hearing the free and voluntary confessions was gone through with, and these two sheriffs and one other person then present were the three witnesses used in court to establish the so-called confessions, which were received by the court and admitted in evidence over the objections of the defendants duly entered of record as each of the said three witnesses delivered their alleged testimony. There was thus enough before the court when these confessions were first offered to make known to the court that they were not, beyond all reasonable doubt, free and voluntary; and the failure of the court then to exclude the confessions is sufficient to reverse the judgment, under every rule of procedure that has heretofore been prescribed, and hence it was not necessary subsequently to renew the objections by motion or otherwise.

The spurious confessions having been obtained—and the farce last mentioned having been gone through with on Monday, April 2d—the court, then in session, on the following day, Tuesday, April 3, 1934, ordered the grand jury to reassemble on the succeeding day, April 4, 1934, at 9 o'clock, and on the morning of the day last mentioned the grand jury returned an indictment against the defendants for murder. Late that afternoon the defendants were brought from the jail in the adjoining county and arraigned, when one or more of them offered to plead guilty, which the court declined to accept, and, upon inquiry whether they had or desired counsel, they stated that they had none, and did not suppose that counsel could be of any assistance to them. The court thereupon appointed counsel and set the case for trial for the following morning at 9 o'clock, and the defendants were returned to the jail in the adjoining county about thirty miles away.

The defendants were brought to the courthouse of the county on the following morning, April 5th, and the so-called trial was opened and was concluded on the next day, April 6, 1934, and resulted in a pretended conviction with death sentences. The evidence upon which the conviction was obtained was the so-called confessions. Without this evidence, a peremptory instruction to find for the defendants would have been inescapable. The defendants were put on the stand, and by their testimony the facts and the details thereof as to the manner by which the confessions were extorted from them were fully developed, and it is further disclosed by the record that the same deputy, Dial, under whose guiding hand and active participation the tortures to coerce the confessions were administered, was actively in the performance of the supposed duties of a court deputy in the courthouse and in the presence of the prisoners during what is denominated, in complimentary terms, the trial of these defendants. This deputy was put on the stand by the state in rebuttal and admitted the whippings. It is interesting to note that in his testimony with reference to the whipping of the defendant Ellington, and in response to the inquiry as to how severely he was whipped, the deputy stated, ‘Not too much for a [Black man]; not as much as I would have done if it were left to me.’ Two others who had participated in these whippings were introduced and admitted it—not a single witness was introduced who denied it. The facts are not only undisputed, they are admitted, and admitted to have been done by officers of the state, in conjunction with other participants, and all this was definitely well known to everybody connected with the trial, and during the trial, including the state’s prosecuting attorney and the trial judge presiding.

[Analysis]

1. The state stresses the statement in *Twining v. New Jersey*, 211 U.S. 78 (1908), that “exemption from compulsory self-incrimination in the courts of the states is not secured by any part of the Federal Constitution,” and the statement in *Snyder v. Massachusetts*, 291 U.S. 97 (1934), that “the privilege against self-incrimination may be withdrawn and the accused put upon the stand as a witness for the state.” But the question of the right of the state to withdraw the privilege against self-incrimination is not here involved. The compulsion to which the quoted statements refer is that of the processes of justice by which the accused may be called as a witness and required to testify. Compulsion by torture to extort a confession is a different matter.

The state is free to regulate the procedure of its courts in accordance with its own conceptions of policy, unless in so doing it “offends some principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.” The state may abolish trial by jury.^[2] It may dispense with indictment by a grand jury and substitute complaint or information. But the freedom of the state in establishing its policy is the freedom of constitutional government and is limited by the requirement of due process of law. Because a state may dispense with a jury trial, it does not follow that it may substitute trial by ordeal. The rack and torture chamber may not be substituted for the witness stand. The state may not permit an accused to be hurried to conviction under mob domination—where the whole proceeding is but a mask—without supplying corrective process. The state may not deny to the accused the aid of counsel. Nor may a state, through the action of its officers, contrive a conviction through the pretense of a trial which in truth is “but used as a means of depriving a defendant of liberty through a deliberate deception of court and jury by the presentation of testimony known to be perjured.” And the trial equally is a mere pretense where the state authorities have contrived a conviction resting solely upon confessions obtained by violence. The due process clause requires “that state action, whether through one agency or another, shall be consistent with the fundamental principles of liberty and justice which lie at the base of all our civil and political institutions.” It would be difficult to conceive of methods more revolting to the sense of justice than those taken to procure the confessions of these petitioners, and the use of the confessions thus obtained as the basis for conviction and sentence was a clear denial of due process.

2. It is in this view that the further contention of the State must be considered. That contention rests upon the failure of counsel for the accused, who had objected to the admissibility of the confessions, to move for their exclusion after they had been introduced and the fact of coercion had been proved. It is a contention which proceeds upon a misconception of the nature of petitioners’ complaint. That complaint is not of the commission of mere error, but of a wrong so fundamental that it made the whole proceeding a mere pretense of a trial and rendered the conviction and sentence wholly void. We are not concerned with a mere question of state practice, or whether counsel assigned to petitioners were competent or mistakenly assumed that their first objections were sufficient. In an earlier case, the Supreme Court of the State had recognized the duty of the court to supply corrective process where due process of law had been denied. In *Fisher v. State*, 145 Miss. 116 (1926), the court said:

Coercing the supposed state’s criminals into confessions and using such confessions so coerced from them against them in trials has been the curse of all countries. It was the chief iniquity, the crowning infamy of the Star Chamber, and the Inquisition, and other similar institutions. The Constitution recognized the evils that lay behind these practices

and prohibited them in this country. ... The duty of maintaining constitutional rights of a person on trial for his life rises above mere rules of procedure, and wherever the court is clearly satisfied that such violations exist, it will refuse to sanction such violations and will apply the corrective.

In the instant case, the trial court was fully advised by the undisputed evidence of the way in which the confessions had been procured. The trial court knew that there was no other evidence upon which conviction and sentence could be based. Yet it proceeded to permit conviction and to pronounce sentence. The conviction and sentence were void for want of the essential elements of due process, and the proceeding thus vitiated could be challenged in any appropriate manner. It was challenged before the Supreme Court of the State by the express invocation of the Fourteenth Amendment. That court entertained the challenge, considered the federal question thus presented, but declined to enforce petitioners' constitutional right. The court thus denied a federal right fully established and specially set up and claimed, and the judgment must be reversed.

Notes, Comments, and Questions

As noted in the [footnote](#) we added to the *Brown* opinion, the Court included a statement about jury trials that is no longer accurate. States are required to provide trial by jury for crimes punishable by more than six months' imprisonment. See *Duncan v. Louisiana*, [391 U.S. 145](#) (1968). In 1936, the Supreme Court had not yet "incorporated" many provisions from the Bill of Rights against the states, meaning that the states were free to ignore them. For purposes of this course, students should presume that constitutional provisions apply with equal force against the states and the federal government, unless instructed otherwise. One key criminal procedure provision not incorporated is the right to indictment by a grand jury. See *Hurtado v. California*, [110 U.S. 516](#) (1884). In *Timbs v. Indiana*, [139 S. Ct. 682](#) (2019), the Court unanimously held that the Excessive Fines Clause of the Eighth Amendment is incorporated against the states. In *Ramos v. Louisiana*, [140 S.Ct. 1390](#) (2020), the Court held that the Sixth Amendment requires states use only a unanimous jury verdict to convict defendants of serious offenses, setting aside a conviction based on a 10-to-2 vote. This continues the decades-long trend of incorporating the Bill of Rights through the Fourteenth Amendment.

Students may find one procedural aspect of *Brown* particularly upsetting, in addition to the terrible conduct that agents of the state committed against the defendants: After the defendants were convicted, they appealed to the highest court of their state, and the state court *affirmed the convictions*. Two dissenting members of that court set forth at length the terrible conduct—so carefully that the Supreme Court of the United States would later cut and paste much of the dissent. Whatever one's position on theories related to federalism, one cannot avoid the conclusion that at least in this case, a state's justice system was sorely in need of federal supervision. Throughout this course, students will notice an ongoing debate about how much Supreme Court oversight is necessary to protect Americans from police officers, prosecutors, and judges behaving badly. The Court's assessment has changed over time, and justices serving together often disagree.

Notes

1. See e.g., *Harlow v. Fitzgerald*, [457 U.S. 800](#) (1982); *U.S. v. Peltier*, [422 U.S. 531](#) (1975); *Anderson v. Creighton*, [483 U.S. 635](#) (1987); *Wagemann v. Adams*, [829 F.2d 196](#) (1st Cir. 1987). See also, e.g., Milwaukee Police Department Standard Operating Procedure [085.00](#), expressing the need to be familiar with "the U.S. Constitution, statutory authority and applicable case law."
2. [Footnote by editors] This is no longer true. States are required to provide trial by jury for crimes punishable by more than six months' imprisonment. See *Duncan v. Louisiana*, [391 U.S. 145](#) (1968). In 1936, the Supreme Court had not yet "incorporated" many provisions from the Bill of Rights against the states, meaning that the states were free to ignore them. For purposes of this course, students should presume that constitutional provisions apply with equal force against the states and the federal government, unless instructed otherwise. One key criminal procedure provision not incorporated is the right to indictment by a grand jury. See *Hurtado v. California*, [110 U.S. 516](#) (1884).

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1.3: Reading Cases

What's the Point of Reading Cases?

As noted in [Section 1.1](#), we will be reading a number of cases. In this context a case is known as a judicial opinion, or simply an "opinion." This is largely because traditional textbooks in undergraduate courses are full of contexts and maybe a few simplistic hypothetical illustrations, which frequently deprives students of the factual nuance and context of real-world situations and implications. One of the predominant themes in understanding how courts arrive at their decisions is "the totality of the circumstances": A crucial factor in determining the constitutionality of an action is by considering all the facts involved in the matter that are relevant to the issue that a court must decide. In other words, in the criminal procedure context, the court looks at the case based on the entire constellation of facts—including the officer's experience and training—existing at the moment the officer acts. In essence, the court takes a picture a split-second before the officer's action, and it considers everything in that picture that may have any bearing on the constitutionality of the action.

Note

The term, opinion, in the *legal* setting is distinct from how the term typically is used in general public discourse. In general discourse, an opinion is more of a personal belief, viewpoint, thought, or feeling about a particular topic. In the law, although it is true that individual judges or justices may have conflicting viewpoints, they support their viewpoints with precedent and detailed reasoning that applies the precedent to the specific factual circumstances of a dispute legal dispute. These different viewpoints tend to arise from differing interpretations of the law. But these differing interpretations may not be based merely on beliefs and feelings; they are supported by reasoning.

An essential part of reading cases is breaking down a case into its pieces. By dissecting cases and understanding their parts, you will be equipped to create rules, analogize and distinguish cases, and predict and advocate for outcomes in factual scenarios. You will also detect patterns in judicial reasoning and see legal theory put into practice.

What to Identify When Reading Cases

Ultimately, when reading cases, students should learn to answer two key questions presented in every single criminal procedure case:

1. Were someone's rights (usually constitutional rights) violated?
2. If the answer to the first question is 'yes,' so what?

Answering the first question requires knowledge of the Supreme Court's decisions interpreting the Fourth, Fifth, and Sixth Amendments to the Constitution, among other provisions. For example, the Court has considered over several cases—decided over several decades—what counts as a "search" for purposes of the Fourth Amendment. It has debated what the Due Process Clauses of the Fifth and Fourteenth Amendments require of police officers conducting interrogations. And it has weighed how to protect the right to counsel guaranteed by the Sixth Amendment to all criminal defendants.

Answering the second question—"So what?"—requires knowledge of the remedies the Supreme Court has provided for violations of the rights of criminal suspects and defendants. For a defendant, the most desirable remedy is often the exclusion of evidence obtained illegally. When the "exclusionary rule" applies, evidence gained during an unlawful search or interrogation, for example, may become unavailable to prosecutors, which may lead to the dismissal of criminal charges. The proper scope of the exclusionary rule has been hotly debated for decades, and even its existence is not taken for granted by everyone on the Supreme Court. When exclusion of evidence is not available, the best remedy may be money damages, although that remedy has its own shortcomings. Students will learn the basics of when various remedies are available for violations of criminal procedure rules.

In a sense, the rules governing searches, seizures, interrogations, and so on can be considered the “substantive” law of criminal procedure. These rules constitute the bulk of most criminal procedure courses, and this one is no exception. Questions in this category include: When do police need a warrant? When must police give “*Miranda* warnings”? What must states provide for criminal defendants too poor to hire a lawyer?

The remedies are what one might call the “procedural” aspect of criminal procedure law. Questions in this category include: If police executing a search warrant break down someone’s door without justification, can the homeowner exclude evidence found during the ensuing search? Does the answer change if the warrant was somehow defective? When can prosecutors use confessions obtained in violation of the *Miranda* rule? The portion of assigned readings explicitly devoted to remedies is far less than that given to “substantive” criminal procedure rights. Keep in mind, however, that rights without remedies are largely worthless.

The Basics

At the outset, do not read cases in the same way you would read a book. (i.e., reading sequentially from the first word to the last). Reading cases requires active engagement and a strategic approach. For example, for students new to reading judicial opinions, it is frequently good to start at the end to see whether the court affirmed the decision of the court below, reversed it, or a combination of both. Comprehension is a little easier when you know how it ends.

✓ Example

Assume that the name of an appellate court case is *Smith v. Jones* (at an intermediate court of appeals or a supreme court). This means that the court below ruled against Smith. Smith being the first party identified (i.e., *Smith v.*) means that Smith is claiming that the court below was wrong, and Smith is asking the court to reverse (or at least partially reverse) the ruling made below. Jones won in the court below and is defending the appeal, trying to get the court to keep the same result. So, if the case is *Smith v. Jones*, and you skip to the end and see the word, “Affirmed,” now you know that the court agreed with the court below, and Smith lost again. But if you see “Reversed” at the end, now you know that the court disagreed with the court below and Smith won this time.

When you read a case, you should read with the goal of pulling information from the text. As you read, ask yourself:

1. What is the issue that the court is deciding?
2. What facts are relevant to the court's decision?
3. What legal arguments did the parties make?
4. How did the the facts and the legal arguments fit together? In other words, examine (a) the reasoning that the court used to reach its conclusion and (b) how the relevant facts and legal arguments fit into that reasoning.

If you read passively, just scanning your eyes across the screen and failing to engage with what you are reading, then you are wasting your time.

Below are definitions of the parts of a case to help you locate different pieces and to understand each component’s role. They are placed in the order you will typically encounter each one while reading an opinion. But be forewarned: There is never a guarantee that each piece will be found in the same place every time. At times, judicial writing can leave a lot to be desired in terms of structure.

After you read a case, you will then want to record what you discovered when reading the case. This process is called briefing a case, which we will be discuss in the next section.

Typical Components of a Case

Caption

Sometimes referred to as the header, the caption tells you who the parties are in the case, which court the opinion comes from, the date the opinion was issued, and what the case citation is.

Citation

A citation is a unique set of numbers and letters that is assigned to that particular case. Think of it like a barcode. A citation for a case typically comes in this format: ### XXX ####. Back when you had to look up cases in bound book volumes, the XXX would tell you which reporter to look for the case in, and the numbers told you what volume of the case would be and page number the

case would be. For instance, if a case citation was 123 S.E.2d 456, that would mean you should look for the case in the 123rd volume of the second series of the Southeastern Reporter on page 456.

Procedural History

Sometimes referred to as the procedural facts, the procedural history explains how the legal dispute got from its start and how it reached this court. This section usually includes when the disputed conduct occurred when the litigation started (whether civil or criminal), and what type of proceedings occurred before the court heard the case.

Facts

These are the facts the court has decided are relevant or material to its decision-making process. These facts usually include who the parties are, their relationship to one another, and the circumstances relating to the nature legal dispute. A good, quick way to decide if a fact is relevant and material to the outcome is to see if it factors into part of the issue presented in some way (see "Issue," below). For example, if the case is about whether there was a signed agreement, then facts surrounding a written document and signatures on the paper will likely be material. Whether the ink used to sign was pink will likely not be material.

Issue

Frequently referred to as "the question," the issue is what the legal dispute is about and the fundamental matter the court is deciding. For all practical purposes, this is why the case matters.

The issue may be presented in question form asking about what the outcome is when the legal rule is applied to the material facts. A court may identify the issues in multiple ways, including:

- The issue [or question] to be decided is whether the officer's placement of a GPS tracking device underneath the suspect's vehicle constituted a "search."
- The issue [or question] before the court is whether [same as above].
- The issue [or question] is: Did the officer's placement of a GPS tracking device underneath the suspect's vehicle constitute a "search"?

The court might otherwise say something like, "We must decide whether . . ." without using the term "issue" or "question."

Identifying the issue makes following the legal arguments, reasoning, and holding easier to understand.

Rule Statement/Legal Rule

The legal rule, either from a statute, case, regulation, or some combination, that the court will use to address the legal question.

Standard of Review

This will tell you how much deference the appellate court must give the lower court's decision.

Reasoning

The court's reasoning is commonly referred to as "rationale," "analysis," or "application." The reasoning usually makes up the bulk of the opinion and is where the court "shows its work." The court explains what sources of law and policy it used to answer the legal issue. In its reasoning, a court can use statutes, preview case law (i.e., precedent), public policy, and/or other sources of authority to support its thought process. Appellate courts tend to rely heavily on precedent in one way or another, even when they decide legal issues the court has not previously decided. Courts do not base their rationale *entirely* out of thin air. (This is not to say that a given court's reasoning is always sound. As noted below, court decisions are not always unanimous between the judges or justices on the court. In discourse, a phrase like, "the court said," really refers only to the majority of the court. See the distinction between "majority," "concurring," and "dissenting" opinions below.)

Holding

Outcome of the case when the legal rule is applied to the facts of the case. The outcome can serve as precedent for future cases. While this sounds simple, sometimes locating what the court has held can be challenging. A court's holding "consists of those propositions along the chosen decisions path or paths of reasoning that (1) are actually decided, (2) are based upon the facts of the case, and (3) lead to the judgment."^[1]

Disposition

The procedural outcome of the case. Cases can be **affirmed** (higher court says lower court got it right), **reversed** (higher court says lower court got it wrong and higher court is replacing lower court's judgment with its own), **vacated** (judgment of the lower court is voided but not replaced with higher court's judgment), or **remanded** (higher court sends the case back to the lower court to make a new decision or conduct further proceedings in light of higher court's decision). A case that is vacated will usually also be remanded. Cases can be **affirmed in part and reversed in part** (the higher court says lower court got part of it right and part of it wrong).

Opinion, majority

Opinion by the majority of the judges or justices on the court, stating the outcome that is controlling in the case. The holding officially from the majority opinion, thus determining the dispute's outcome (and may be used as precedent in the future).

Opinion, concurring

Opinion in which the author agrees with the holding of the case but not based on the reasoning that the majority used. If the case in your assigned reading includes a concurring opinion, read it carefully because it likely presents a nuance that will be discussed in class.

Opinion, dissenting

Opinion in which the author disagrees with the holding of the case and wants to explain why the majority is wrong. If the case in your assigned reading includes a dissenting opinion, read it carefully because it likely presents a counterpoint to the majority's holding that will be discussed in class.

Footnotes and Endnotes

Case citations or substantive comments that the opinion's author did not place in the main body of the opinion but relate to the portion of the case where the footnote or endnote is flagged. Always read the footnotes. If the author felt strongly enough about something to take the time to add the footnote, it is important. Of course, since the cases in this book are edited, some footnotes might not have been originally written by the court. Regardless, when you see a footnote or endnote included for a case, you absolutely should read the footnote or endnote, because the court, the editor, or both decided it was important.

Tips for Reading Cases

(Even if a few of these tips were briefly referenced above, they bear repeating.)

First, you may want (or need) to skip to the end of the case to see the ultimate result. Some courts "spoil" the ending near the beginning of the opinion, which is an advantage to the reader. *But* it is common for courts to go back and forth, telling the reader what one party argued and addressing that, and then telling the reader what the other party argued and addressing that. This can be confusing because courts may both agree and disagree with certain points each party makes, which may lead the reader to think the court is leaning in one direction and then the other. So, it helps to get an idea of who wins *before* you really dig into the case. (As noted above, reading cases is not like reading most books, so spoiling the ending is helpful.)

What happens at the end of an opinion is that the court will state that they either affirm or reverse the lower court's decision. If the court says, "affirmed," then the respondent wins and the appellant/petitioner loses. If the court says, "reversed," then the petitioner wins and the respondent loses.

Second, before reading the statement of facts that led to the dispute, find the "issue" in the case, which is also referred to as the "question." (And there may be multiple.) Look for these to help you complete the Issue section of the brief. Typically, "issue," "question," or both will be in the opinion; sometimes, the court will use other language about it needs to "decide" or "determine." (See also [Issue](#), above.)

Third, although the statement of facts leading to the dispute appears near the beginning of a court's opinion, do not read through them first. Starting with the issue (and sometimes even the Rule as well) can help you identify which facts will turn out to be the facts that will be relevant to the outcome. Frequently, courts go into detail to paint context for the reader, but all of the facts will not be relevant for the case brief. Also, sometimes relevant facts are listed elsewhere in the case (such as in the Analysis) that weren't listed in the statement of facts that appears early in the case. So, be on the lookout for those facts as well. (And if they are identified later in the case, they are most assuredly relevant to the outcome.)

Note

When you brief the case: Although the summary of the facts in the case brief is near the beginning, you should usually complete this section last. Before you finalize the brief, you will want to filter out facts that are not entirely relevant to the court's reasoning and the rule that it applied.

Fourth, in many opinions, the applicable rule or rules (i.e., the legal standards on which the court based its analysis) are located in a section or sections following the factual background that led to the issue before the court. However, sometimes, they also are distributed throughout the opinion, depending on how the court is addressing the issues and arguments. In that case, some facts are separated because the court divided its discussion into different areas of the opinion.

Fifth, the court's analysis (also known as its rationale or reasoning supporting its holding) follows its explanation of the applicable rules. Generally, a court's methodology is to apply the rules governing the dispute to the facts of the case. Sometimes, the court also creates a new rule as well because it had not dealt with these issues previously.

Other Resources

Reading and watching the content below is recommended, even though multiple readings and videos are about the same topic. People have differing approaches and strategies, and some may connect with you more than others.

Articles

- [How to Read a Case](#) by Julie Novkov^[2]
- [How to Read a Legal Opinion](#) by Orin S. Kerr

Videos

- [Reading Cases](#)
- [How to Read a Case](#)

Next

The next section, will introduce how to brief cases.

Notes

1. If not a holding, a proposition stated in a case counts as "dicta." Michael Abramowicz and Maxwell Stearns, *Defining Dicta*, 57 Stan. L. Rev. 953, 1065 (March 2005). Any other commentary or "editorial" comments the court provides other than the holding. Dicta does not have any precedential value, although it can help you understand why the court made the holding that it did. Sometimes, people will argue over whether something is dicta or a holding. Generally, "statements narrowly tailored to the facts" are more significant and are more likely to be considered directly connected to the holding; "broader or more general statements" are more likely to be considered dicta." Andrew C. Michaels, *The Holding-Dictum Spectrum*, 70 Ark. L. Rev. 661, 664 (2017). ↩
2. Also downloadable from the [OpenLab at New York City College of Technology](#). ↩

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Original source: <https://alg.manifoldapp.org/projects/legal-writing-manual>.

1.4: Briefing Cases

This page is a draft and is under active development.

[The Basics of How to Brief Cases](#)

[Annotated Cases & Annotated Case Brief Examples](#)

[Brief the Case Exercise](#)

Notes

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1.5: Key Constitutional Text

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Key Constitutional Text

Introduction

The text of the Amendments to the U.S. Constitution provided below is fundamental to this course. Yet, despite how instrumental the constitutional language is to a citizen's rights, it is important to note that none of these provisions define many key terms, including:

- “unreasonable”
- “search”
- “seizure”
- “probable cause”
- “put in jeopardy”
- “due process of law”
- “confronted with the witnesses against him”
- “Assistance of Counsel”

In this course, we explore how the courts work with these terms to fill the constitutional gaps.

The Key Constitutional Language

The U.S. Constitution was drafted as an effort to combine the original states into one nation under a workable governing system. The Constitution replaced the original unifying document created after the Revolutionary War for independence from Great Britain, known as the Articles of Confederation, because many regarded the Articles of Confederation as providing too little authority for the national government. The national government needed greater ability to regulate the economy and to provide for national defense by obligating states to cooperate and help each other as one country. Prior to the ratification of the Constitution, states often regarded themselves as very separate entities and that were not fully committed to a unified whole. After the Constitution was ratified, creating the United States of America and designing the details of the nation's governing system, concerns arose about whether the document provided enough protection for the rights of individuals. As a result, the Bill of Rights was drafted and ultimately added ten Amendments to the Constitution in 1791, the first eight of which specified legal protections for individuals, known to us as “constitutional rights”, that define the relationship of individuals to government. “Rights”, in a legal sense, are entitlements for individuals that the government is not supposed to violate. Over the course of subsequent decades, additional Amendments have been added to the Constitution. Of particular importance are the Amendments added after the Civil War, especially the Fourteenth Amendment (1868) that contains the rights to due process of law and equal protection of the laws.

In this course, students will focus on Supreme Court cases arising from a handful of constitutional provisions. Five Amendments to the Constitution of the United States are reprinted here (four in full, one in part) for your convenience. Note how the description of rights in these Amendments contain many vague terms, such as “unreasonable search” and “cruel and unusual punishment”. These terms require interpretation when disputes arise about their meaning. Judges have the authority to interpret these terms and thereby clarify—and change—the meanings of constitutional rights:

Amendment IV

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Amendment V

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal

case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Amendment VI

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

Amendment VIII

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishment inflicted.

Amendment XIV

Section 1.

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.



> Supplementary Attributions

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1.6: Setting the Stage—Introductory Concepts and Terms

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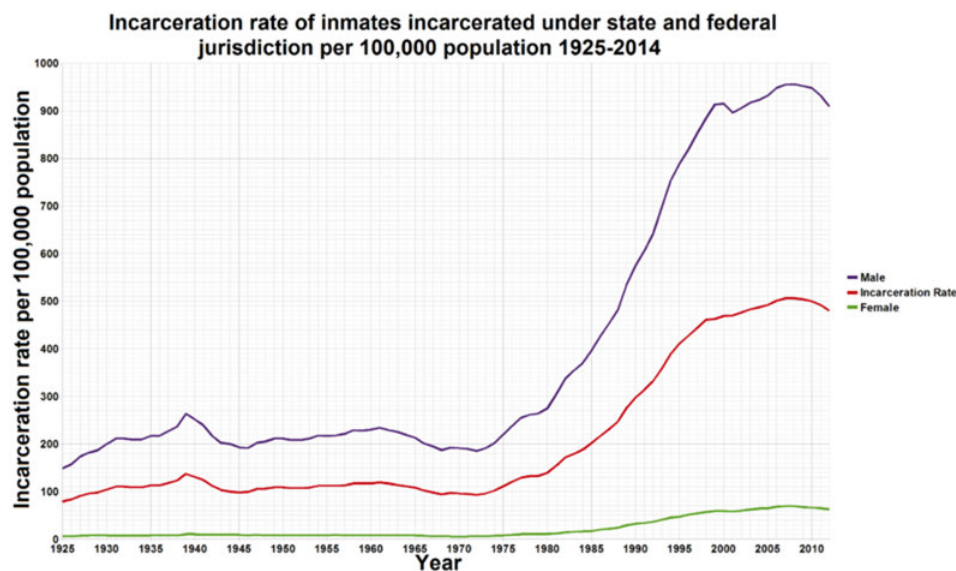
1.7: Scope of the Criminal Justice System

This page is a draft and is under active development.

The Scope of the Criminal Justice System

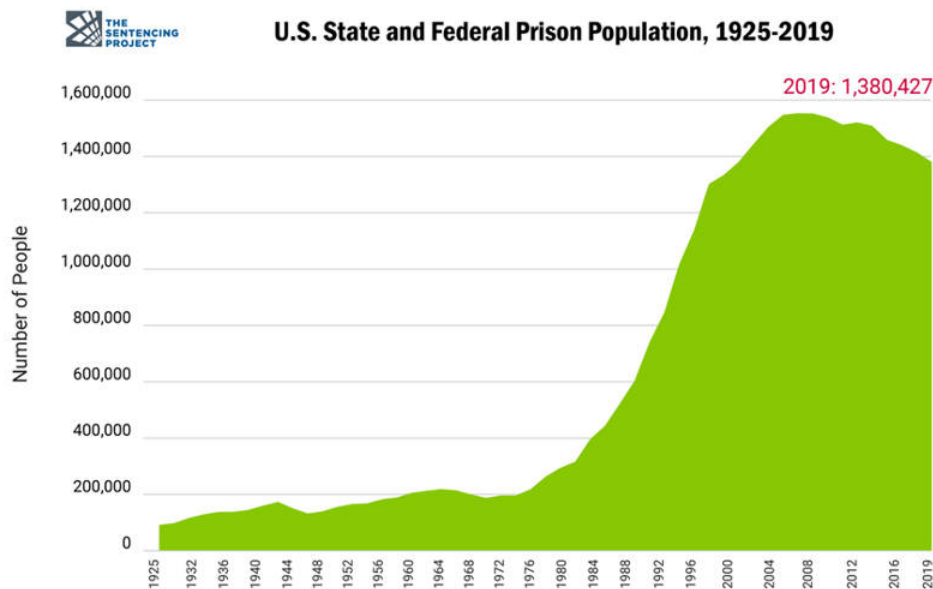
Before returning to the meat of criminal procedure law, let us consider for a moment just how large and important a system is being governed by nine Justices interpreting a handful of ancient clauses.

Beginning around 1970, the United States began a massive increase in incarceration. Between 1980 and 2010, the incarceration rate more than doubled. Despite a small drop in incarceration over the past decade, as of early 2022 the United States incarcerated about 2 million people, including inmates at prisons, local jails, and juvenile facilities, among other places. This chart (released to the public domain [via Wikimedia Commons](#)) shows how the incarceration rate (essentially, the number of inmates per 100,000 U.S. residents) was relatively flat for decades through the 1960s, began rising after 1970, and then increased rapidly after 1985. The rate has decreased slightly over the past few years.



The U.S. 2021 incarceration rate was 664 per 100,000 residents, exceeding every other country in the world. The states with the highest incarceration rates in 2021 were Mississippi (1,031), Louisiana (1,094), and Oklahoma (993). The states with the lowest rates were Rhode Island (289), Vermont (288) and Massachusetts (275). Even these states have higher incarceration rates than most countries, including Iran (228), South Africa (248), Israel (234), New Zealand (188), Singapore (185), Poland (188), Jamaica (137), Iraq (126), France (93), and Ireland (72).³

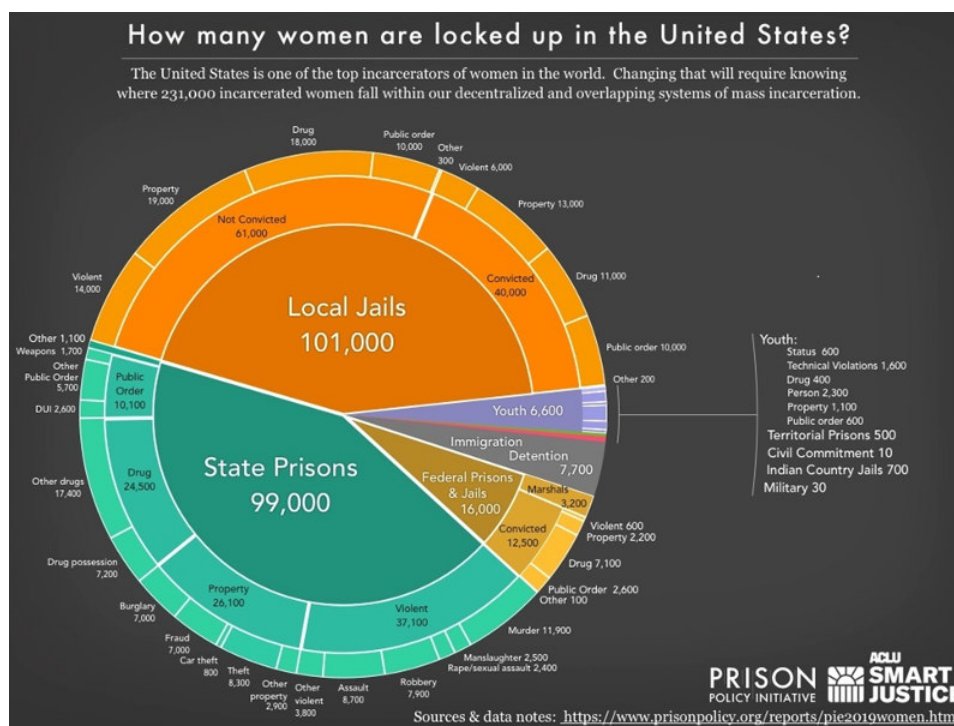
The next chart (provided courtesy of [The Sentencing Project](#)) shows the raw numbers of prisoners in America. Note that this does not include inmates in jails or juvenile facilities.



Nationwide, the total prison and jail population as of December 31, 2020 was 1,691,600.⁴ In addition, 3,890,400 persons were under supervision—on parole or probation—creating a total correctional system population of 5,500,600.

Because states house the overwhelming bulk of U.S. prisoners, state budgets fund the overwhelming bulk of U.S. correctional expenses. In 1985—just before the American prison population began its sharp increase—states spent a combined \$6.7 billion on corrections. By 1990, the cost had risen to \$16.9 billion. It was \$36.4 billion in 2000, \$51.4 billion in 2010, and \$56.6 billion in 2019.⁵

The next chart (provided courtesy of [the Prison Policy Initiative](#)) shows where incarcerated women are housed and what offenses led them to confinement.



[The PPI also has a chart entitled “[The Whole Pie](#),” which covers *all* incarcerated persons, male and female. Although we lack permission to include the chart in this book, students may (and should) find it [online](#).]

The likelihood of imprisonment is not distributed evenly among different groups of Americans. Women constitute about half of the total U.S. population but only 7 percent of the total prison population. Racial disparities are also stark. In 2020, state and federal prisons housed (out of a total of 1,182,166 inmates) 389,500 Black inmates (33 percent of the total), 358,900 white inmates (30 percent of the total), and 275,300 Hispanic inmates (23 percent of the total).⁶ According to Census data taken around the same time (April 1, 2020), 76 percent of Americans described themselves as white alone (no other race), 13 percent as Black or African American alone, 3 percent as two or more races, and 18.5 percent as Hispanic or Latino.⁷ Although the demographic definitions—particularly for deciding who counts as Hispanic—used in various surveys are not always identical, the results are clear. Black and Hispanic Americans are significantly overrepresented among prisoners.

Despite the high U.S. incarceration rate, most Americans will never serve time. Instead, the majority of Americans encounter the justice system through their interactions with police officers. U.S. law enforcement agencies employ about 665,000 officers at the local, state, and federal level. That works out to about one officer for every 500 Americans. In 2019, officers performed about 10 million arrests. As was noted for incarceration, arrest rates exhibit disparities by race and sex. Of those arrested in 2019, 69.4 percent were white, and 26.6 percent were black. Males constituted 72.5 percent of those arrested in 2019. Young men are especially likely to be arrested.⁸

When suspects are arrested and prosecuted, states often provide legal counsel because the defendants otherwise could not afford it. The per capita expense on indigent defense varies tremendously among states. For example, in 2017 Wisconsin spent \$86 million, or \$14.83 per resident. That same year Texas spent \$37 million, or \$1.31 per resident.

A Few Recent Cases

We will return now to the discussion we set aside after reading *Brown v. Mississippi*.

“Yes, yes,” one might say, “the criminal justice system is important. As a nation we spend immense sums on police, prosecution, and prisons. And back in 1934, some goons in Mississippi abused criminal defendants, which required intervention by the Supreme Court. What about today?”

This is a fair question; otherwise, we would not have placed it in the mouths of our hypothetical students. We expect that by the end of the semester, few if any students will question whether police and prosecutors still require judicial oversight. The amount and proper form of that oversight will almost surely remain contested—indeed, the Justices themselves contest these issues every year—but the principle is likely to win near unanimous assent. To assuage skepticism without delay, however, we will present some evidence now.

In 2013, the State of California freed Kash Delano Register, whom the state had imprisoned for 34 years for a murder he did not commit.⁹ Mr. Register had been convicted on the basis of false identification testimony, and the lawyers who won his release produced proof that police and prosecutors had concealed from Register’s trial defense team evidence of his innocence, including reports of eyewitnesses who would have contradicted the testimony of prosecution witnesses, along with evidence of how police had used threats of unrelated criminal prosecution to pressure the witnesses against Register. Absent the work of students and faculty at Loyola Law School in Los Angeles, Register might remain incarcerated today. Prosecutors opposed his release until 2013. In 2016, the Los Angeles City Council approved a \$16.7 million settlement payment to Register.¹⁰ The city has paid tens of millions of dollars in other recent settlements related to police conduct.¹¹

In 2012, the State of Missouri released George Allen, Jr., whom the state had imprisoned for 30 years for a St. Louis rape and murder he did not commit.¹² Although prosecutors could not explain how Allen could have travelled from his University City home to the murder scene—St. Louis was paralyzed that day by a 20-inch snowstorm—a jury eventually convicted Allen on the basis of his confession. Decades after his conviction, new lawyers for Allen—from the Bryan Cave law firm and the Innocence Project—produced evidence that police had elicited a false confession from Allen, who was mentally ill. Missouri courts found that prosecutors withheld exculpatory evidence, including lab results, fingerprint records, and information about bizarre interrogation tactics such as hypnosis of a key witness. Allen died in 2016, and the City of St. Louis and Allen’s family settled his civil rights lawsuit in 2018 for \$14 million.

The National Registry of Exonerations, maintained by the University of Michigan, lists 3,176 exonerations, representing “more than 27,200 years lost.”¹³ Because it covers only exonerations, it does not include cases in which misconduct is uncovered in time to prevent a wrongful conviction.

In 2015, the *Wall Street Journal* reported that America’s “10 cities with the largest police departments paid out \$248.7 million” in 2014 in settlements and court judgements in police misconduct cases.¹⁴ Students should keep in mind that because so much

misconduct cannot be remedied through monetary damages, numbers like these understate the problem.

Chicago has settled several multi-million-dollar cases in recent years. Examples include: “A one-time death row inmate brutally beaten by police: \$6.1 million. An unarmed man fatally shot by an officer as he lay on the ground: \$4.1 million.”¹⁵ Another involved an officer who “posted messages on his Facebook page falsely calling [a] teen a drug dealer and criminal” and officers handcuffing this same teen without cause. (Settlement around \$500,000.) More recent cases include “a police officer [who] pointed a gun at [the plaintiff’s] 3-year-old daughter’s chest during a 2013 raid of the family’s Chicago home” and a man who spent about 20 years in prison after being framed.¹⁶

As the *Baltimore Sun* noted—in its 2014 report of how the “city has paid about \$5.7 million since 2011 over lawsuits claiming that police officers brazenly beat up alleged suspects”—the “perception that officers are violent can poison the relationship between residents and police.”¹⁷ The newspaper observed:

“Over ... four years, more than 100 people have won court judgments or settlements related to allegations of brutality and civil rights violations. Victims include a 15-year-old boy riding a dirt bike, a 26-year-old pregnant accountant who had witnessed a beating, a 50-year-old woman selling church raffle tickets, a 65-year-old church deacon rolling a cigarette and an 87-year-old grandmother aiding her wounded grandson.”

In multiple jurisdictions, class action lawsuits about unlawful strip searches have yielded large payments. In 2010, the Cook County (Illinois) Board of Commissioners agreed to a \$55 million settlement with suspects stripped-searched at Cook County Jail. New York City reached a \$50 million settlement in 2001 and another one for \$33 million in 2010, both related to searches in city jails such as Rikers Island. Similar settlements (for smaller amounts) have been reached in places such as Kern County, California; Burlington County, New Jersey; and Washington, D.C. Massachusetts officials settled a suit concerning the Western Massachusetts Regional Women’s Correctional Center, agreeing to prohibit male guards from continuing their practice of videotaping the strip searches of female inmates.

Less sensational issues (nonetheless important to those involved) include the ongoing debate over “stop-and-frisk” tactics nationwide, in addition to racial profiling of motorists. These practices affect persons whose involvement with the criminal justice system might otherwise be fairly minimal. In New York City, a federal court found that NYPD officers violated the Fourth Amendment by performing unreasonable searches and seizures and further found that police violated the Equal Protection Clause of Fourteenth Amendment by stopping and frisking New Yorkers in a racially discriminatory manner.¹⁸ In Missouri, annual reports by the Attorney General regularly find racial disparities in vehicle stops.¹⁹ According to the 2017 report, Black motorists were far more likely to be stopped, despite police finding contraband less often when stopping Black motorists than when stopping white motorists. “African-Americans represent 10.9% of the driving-age population but 18.7% of all traffic stops The contraband hit rate for whites was 35.5%, compared with 32.9% for blacks and 27.9% for Hispanics. This means that, on average, searches of African-Americans and Hispanics are less likely than searches of whites to result in the discovery of contraband.”

In sum, the incidence of police and prosecutorial misconduct is not limited to dusty case files from the old Confederacy.

Meanwhile, crime remains a serious problem, one America has struggled with since colonial times. Since the 1800s, the United States has had a much higher murder rate than European countries otherwise similar to us in measures of economic power and educational attainment. Then, beginning around 1965, the U.S. homicide rate increased dramatically.²⁰ Although the increase was not uniform (different decades saw different trends, and different locations experienced trends differently), the United States as a whole suffered a big increase in crime from the mid-1960s through the early-1990s, with the nationwide homicide rate peaking at around 10 per 100,000 persons. Since then, crime has dropped significantly, returning over twenty years to what was observed in the early 1960s.²¹ By 2000, the homicide rate had dropped to around 5.5 per 100,000, which is close to the rates observed over the subsequent two decades.²² (Time will tell whether the [rising homicide rates observed](#) during 2020 and 2021—that is, during first years of the COVID pandemic—represent an aberration or a new normal.) In other words, American crime rates remain well above those of Western Europe, Canada, and Australia, but they are far better than American rates of a generation ago. The sharp increase in crime between the 1960s and 1990s may explain in part the rapid increase in American incarceration, as politicians offered “tough-on-crime” solutions. The causes of the huge increase in crime beginning around 1965, as well as of the subsequent decrease, are hotly disputed.²³ In any event, crime remains an important political and social issue in America. Court decisions about how police may behave will be better understood if given broader social context. For example, judicial decisions that prevent the convictions of undisputedly guilty defendants may be unpopular among voters, and voters elect the politicians who appoint and confirm Supreme Court Justices. Further, Justices may recognize their relative lack of expertise in the fields of policing and criminology, and they may hesitate to mandate practices (or to prohibit practices) without thoughtfully considering how their

decisions could affect ongoing national efforts to fight crime. The debate over how much the Court should meddle in the affairs of police departments is a thread that runs through the course material.

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1.8: Chapter 1 - What Is This Book?

This page is a draft and is under active development.

This book introduces criminal procedure law in the United States, with a focus on the “investigation” stage of the criminal justice system. Specifically, the book focuses on legal constraints placed upon police and prosecutors, constraints largely derived from Supreme Court interpretations of the Fourth, Fifth, and Sixth Amendments to the Constitution. Major topics include searches and seizures, warrants and when they are required, interrogations, witness identifications of suspects, and the right to counsel during various stages of investigation and prosecution.

At the end of the semester, students should have a solid foundation in the “black-letter law” of criminal procedure. This material is tested on the bar examination, and it is the sort of information that friends and family will expect lawyers to know, even lawyers who never practice criminal law. For example, a lawyer lacking basic familiarity with the *Miranda* Rule risks looking foolish at Thanksgiving dinner. In addition, the legal issues covered in this book relate to some of the most intense ongoing political and social debates in the country. The law governing stop-and-frisk procedures, for example, is not merely trivia one should learn for an exam. It affects the lives of real people. The reliability of eyewitness identifications affects the likelihood of wrongful convictions, a phenomenon persons of all political persuasions oppose. In short, policing and prosecution affect everyone in America, and an informed citizen—especially a lawyer—should understand the primary arguments raised in major controversies in criminal procedure law.

To be sure, understanding the holdings of major cases is essential to more nuanced participation in these debates, and this book devotes the bulk of its pages to Supreme Court opinions, which your authors have edited for length. (To save space, we have omitted internal citations, as well as portions of court opinions, without using ellipses to indicate our edits.) The book then aims to go beyond the information available in majority opinions, concurrences, and dissents. To do so, it includes supplementary material on developments in law and policy. For example, advances in technology raise questions about precedent concerning what counts as a “search” under Fourth Amendment law. The book also provides perspectives on the practical implications of Supreme Court decisions, perspectives often given scant attention by the Justices. For example, state courts have grappled with scientific evidence about witness reliability that has not yet been addressed in Supreme Court opinions resolving due process challenges related to identifications.

Further, in addition to helping students identify situations in which constitutional rights may have been violated, the book explores what remedies are available for different violations. For a criminal defendant, the most desirable remedy will normally be exclusion of evidence obtained through illegal means—for example, drugs found in a defendant’s car or home during an unlawful search. Contrary to common misconceptions among the general public, however, not all criminal procedure law violations result in the exclusion of evidence. Students will read the leading cases on the exclusionary rule, confronting arguments on when the remedy of exclusion—which quite often requires that a guilty person avoid conviction—is justified by the need to encourage adherence by law enforcement to the rules presented in this book concerning searches, seizures, interrogations, and so on.

Your authors have attempted to create a book that presents material clearly and does not hide the ball. Students who read assigned material should be well prepared for class, armed with knowledge of what rules the Supreme Court has announced, along with the main arguments for and against the Court’s choices.

The remainder of this Introduction consists of further effort by your authors to convince you of the importance of the material presented later in the book. Many students possess this book because they are enrolled in a required course or know that this material is tested on the bar exam. Others of you plan to practice criminal law. Still others study criminal procedure to learn more about important societal controversies. Regardless, your authors do not take your attention for granted.

Why Is Criminal Procedure So Important?

In this 1936 unanimous opinion by Chief Justice Charles Evans Hughes, the Supreme Court reviewed a criminal case from Mississippi. Students will see immediately why the actions of police, prosecutors, and judges upset the Supreme Court Justices.

Supreme Court of the United States

Ed Brown v. Mississippi

Decided Feb. 17, 1936—297 U.S. 278 (1936)

MR. CHIEF JUSTICE HUGHES delivered the [unanimous] opinion of the Court.

The question in this case is whether convictions, which rest solely upon confessions shown to have been extorted by officers of the state by brutality and violence, are consistent with the due process of law required by the Fourteenth Amendment of the Constitution of the United States.

Petitioners were indicted for the murder of one Raymond Stewart, whose death occurred on March 30, 1934. They were indicted on April 4, 1934 and were then arraigned and pleaded not guilty. Counsel were appointed by the court to defend them. Trial was begun the next morning and was concluded on the following day, when they were found guilty and sentenced to death.

Aside from the confessions, there was no evidence sufficient to warrant the submission of the case to the jury. After a preliminary inquiry, testimony as to the confessions was received over the objection of defendants' counsel. Defendants then testified that the confessions were false and had been procured by physical torture. The case went to the jury with instructions, upon the request of defendants' counsel, that if the jury had reasonable doubt as to the confessions having resulted from coercion, and that they were not true, they were not to be considered as evidence. On their appeal to the Supreme Court of the State, defendants assigned as error the inadmissibility of the confessions. The judgment was affirmed.

Defendants then moved in the Supreme Court of the State to arrest the judgment and for a new trial on the ground that all the evidence against them was obtained by coercion and brutality known to the court and to the district attorney, and that defendants had been denied the benefit of counsel or opportunity to confer with counsel in a reasonable manner. The motion was supported by affidavits. At about the same time, defendants filed in the Supreme Court a "suggestion of error" explicitly challenging the proceedings of the trial, in the use of the confessions and with respect to the alleged denial of representation by counsel, as violating the due process clause of the Fourteenth Amendment of the Constitution of the United States. The state court entertained the suggestion of error, considered the federal question, and decided it against defendants' contentions. Two judges dissented. We granted a writ of certiorari.

The grounds of the decision were (1) that immunity from self-incrimination is not essential to due process of law; and (2) that the failure of the trial court to exclude the confessions after the introduction of evidence showing their incompetency, in the absence of a request for such exclusion, did not deprive the defendants of life or liberty without due process of law; and that even if the trial court had erroneously overruled a motion to exclude the confessions, the ruling would have been mere error reversible on appeal, but not a violation of constitutional right.

The opinion of the state court did not set forth the evidence as to the circumstances in which the confessions were procured. That the evidence established that they were procured by coercion was not questioned. The state court said: 'After the state closed its case on the merits, the appellants, for the first time, introduced evidence from which it appears that the confessions were not made voluntarily but were coerced.' There is no dispute as to the facts upon this point, and as they are clearly and adequately stated in the dissenting opinion of Judge Griffith (with whom Judge Anderson concurred), showing both the extreme brutality of the measures to extort the confessions and the participation of the state authorities, we quote this part of his opinion in full, as follows:

"The crime with which these defendants, all ignorant [Black people], are charged, was discovered about 1 o'clock p.m. on Friday, March 30, 1934. On that night one Dial, a deputy sheriff, accompanied by others, came to the home of Ellington, one of the defendants, and requested him to accompany them to the house of the deceased, and there a number of white men were gathered, who began to accuse the defendant of the crime. Upon his denial they seized him, and with the participation of the deputy they hanged him by a rope to the limb of a tree, and, having let him down, they hung him again, and when he was let down the second time, and he still protested his innocence, he was tied to a tree and whipped, and, still declining to accede to the demands that he confess, he was finally released, and he returned with some difficulty to his home, suffering intense pain and agony. The record of the testimony shows that the signs of the rope on his neck were plainly visible during the so-called trial. A day or two thereafter the said deputy, accompanied by another, returned to the home of the said defendant and arrested him, and departed with the prisoner towards the jail in an adjoining county, but went by a route which led into the state of Alabama; and while on the way, in that state, the deputy stopped and again severely whipped the defendant, declaring that he would continue the whipping until he confessed, and the defendant then agreed to confess to such a statement as the deputy would dictate, and he did so, after which he was delivered to jail.

"The other two defendants, Ed Brown and Henry Shields, were also arrested and taken to the same jail. On Sunday night, April 1, 1934, the same deputy, accompanied by a number of white men, one of whom was also an officer, and by the jailer, came to the

jail, and the two last named defendants were made to strip and they were laid over chairs and their backs were cut to pieces with a leather strap with buckles on it, and they were likewise made by the said deputy definitely to understand that the whipping would be continued unless and until they confessed, and not only confessed, but confessed in every matter of detail as demanded by those present; and in this manner the defendants confessed the crime, and, as the whippings progressed and were repeated, they changed or adjusted their confession in all particulars of detail so as to conform to the demands of their torturers. When the confessions had been obtained in the exact form and contents as desired by the mob, they left with the parting admonition and warning that, if the defendants changed their story at any time in any respect from that last stated, the perpetrators of the outrage would administer the same or equally effective treatment.

“Further details of the brutal treatment to which these helpless prisoners were subjected need not be pursued. It is sufficient to say that in pertinent respects the transcript reads more like pages torn from some medieval account than a record made within the confines of a modern civilization which aspires to an enlightened constitutional government.

“All this having been accomplished, on the next day, that is, on Monday, April 2, when the defendants had been given time to recuperate somewhat from the tortures to which they had been subjected, the two sheriffs, one of the county where the crime was committed, and the other of the county of the jail in which the prisoners were confined, came to the jail, accompanied by eight other persons, some of them deputies, there to hear the free and voluntary confession of these miserable and abject defendants. The sheriff of the county of the crime admitted that he had heard of the whipping but averred that he had no personal knowledge of it. He admitted that one of the defendants, when brought before him to confess, was limping and did not sit down, and that this particular defendant then and there stated that he had been strapped so severely that he could not sit down, and, as already stated, the signs of the rope on the neck of another of the defendants were plainly visible to all. Nevertheless the solemn farce of hearing the free and voluntary confessions was gone through with, and these two sheriffs and one other person then present were the three witnesses used in court to establish the so-called confessions, which were received by the court and admitted in evidence over the objections of the defendants duly entered of record as each of the said three witnesses delivered their alleged testimony. There was thus enough before the court when these confessions were first offered to make known to the court that they were not, beyond all reasonable doubt, free and voluntary; and the failure of the court then to exclude the confessions is sufficient to reverse the judgment, under every rule of procedure that has heretofore been prescribed, and hence it was not necessary subsequently to renew the objections by motion or otherwise.

“The spurious confessions having been obtained—and the farce last mentioned having been gone through with on Monday, April 2d—the court, then in session, on the following day, Tuesday, April 3, 1934, ordered the grand jury to reassemble on the succeeding day, April 4, 1934, at 9 o’clock, and on the morning of the day last mentioned the grand jury returned an indictment against the defendants for murder. Late that afternoon the defendants were brought from the jail in the adjoining county and arraigned, when one or more of them offered to plead guilty, which the court declined to accept, and, upon inquiry whether they had or desired counsel, they stated that they had none, and did not suppose that counsel could be of any assistance to them. The court thereupon appointed counsel, and set the case for trial for the following morning at 9 o’clock, and the defendants were returned to the jail in the adjoining county about thirty miles away.

“The defendants were brought to the courthouse of the county on the following morning, April 5th, and the so-called trial was opened, and was concluded on the next day, April 6, 1934, and resulted in a pretended conviction with death sentences. The evidence upon which the conviction was obtained was the so-called confessions. Without this evidence, a peremptory instruction to find for the defendants would have been inescapable. The defendants were put on the stand, and by their testimony the facts and the details thereof as to the manner by which the confessions were extorted from them were fully developed, and it is further disclosed by the record that the same deputy, Dial, under whose guiding hand and active participation the tortures to coerce the confessions were administered, was actively in the performance of the supposed duties of a court deputy in the courthouse and in the presence of the prisoners during what is denominated, in complimentary terms, the trial of these defendants. This deputy was put on the stand by the state in rebuttal, and admitted the whippings. It is interesting to note that in his testimony with reference to the whipping of the defendant Ellington, and in response to the inquiry as to how severely he was whipped, the deputy stated, ‘Not too much for a [Black man]; not as much as I would have done if it were left to me.’ Two others who had participated in these whippings were introduced and admitted it—not a single witness was introduced who denied it. The facts are not only undisputed, they are admitted, and admitted to have been done by officers of the state, in conjunction with other participants, and all this was definitely well known to everybody connected with the trial, and during the trial, including the state’s prosecuting attorney and the trial judge presiding.”

1. The state stresses the statement in *Twining v. New Jersey*, 211 U.S. 78 (1908), that “exemption from compulsory self-incrimination in the courts of the states is not secured by any part of the Federal Constitution,” and the statement in *Snyder v. Massachusetts*, 291 U.S. 97 (1934), that “the privilege against self-incrimination may be withdrawn and the accused put upon the stand as a witness for the state.” But the question of the right of the state to withdraw the privilege against self-incrimination is not here involved. The compulsion to which the quoted statements refer is that of the processes of justice by which the accused may be called as a witness and required to testify. Compulsion by torture to extort a confession is a different matter.

The state is free to regulate the procedure of its courts in accordance with its own conceptions of policy, unless in so doing it “offends some principle of justice so rooted in the traditions and conscience of our people as to be ranked as fundamental.” The state may abolish trial by jury.¹ It may dispense with indictment by a grand jury and substitute complaint or information. But the freedom of the state in establishing its policy is the freedom of constitutional government and is limited by the requirement of due process of law. Because a state may dispense with a jury trial, it does not follow that it may substitute trial by ordeal. The rack and torture chamber may not be substituted for the witness stand. The state may not permit an accused to be hurried to conviction under mob domination—where the whole proceeding is but a mask—without supplying corrective process. The state may not deny to the accused the aid of counsel. Nor may a state, through the action of its officers, contrive a conviction through the pretense of a trial which in truth is “but used as a means of depriving a defendant of liberty through a deliberate deception of court and jury by the presentation of testimony known to be perjured.” And the trial equally is a mere pretense where the state authorities have contrived a conviction resting solely upon confessions obtained by violence. The due process clause requires “that state action, whether through one agency or another, shall be consistent with the fundamental principles of liberty and justice which lie at the base of all our civil and political institutions.” It would be difficult to conceive of methods more revolting to the sense of justice than those taken to procure the confessions of these petitioners, and the use of the confessions thus obtained as the basis for conviction and sentence was a clear denial of due process.

2. It is in this view that the further contention of the State must be considered. That contention rests upon the failure of counsel for the accused, who had objected to the admissibility of the confessions, to move for their exclusion after they had been introduced and the fact of coercion had been proved. It is a contention which proceeds upon a misconception of the nature of petitioners’ complaint. That complaint is not of the commission of mere error, but of a wrong so fundamental that it made the whole proceeding a mere pretense of a trial and rendered the conviction and sentence wholly void. We are not concerned with a mere question of state practice, or whether counsel assigned to petitioners were competent or mistakenly assumed that their first objections were sufficient. In an earlier case the Supreme Court of the State had recognized the duty of the court to supply corrective process where due process of law had been denied. In *Fisher v. State*, 145 Miss. 116 (1926), the court said: “Coercing the supposed state’s criminals into confessions and using such confessions so coerced from them against them in trials has been the curse of all countries. It was the chief iniquity, the crowning infamy of the Star Chamber, and the Inquisition, and other similar institutions. The Constitution recognized the evils that lay behind these practices and prohibited them in this country. ... The duty of maintaining constitutional rights of a person on trial for his life rises above mere rules of procedure, and wherever the court is clearly satisfied that such violations exist, it will refuse to sanction such violations and will apply the corrective.”

In the instant case, the trial court was fully advised by the undisputed evidence of the way in which the confessions had been procured. The trial court knew that there was no other evidence upon which conviction and sentence could be based. Yet it proceeded to permit conviction and to pronounce sentence. The conviction and sentence were void for want of the essential elements of due process, and the proceeding thus vitiated could be challenged in any appropriate manner. It was challenged before the Supreme Court of the State by the express invocation of the Fourteenth Amendment. That court entertained the challenge, considered the federal question thus presented, but declined to enforce petitioners’ constitutional right. The court thus denied a federal right fully established and specially set up and claimed, and the judgment must be reversed.

Notes, Comments, and Questions

As noted in the footnote we added to the *Brown* opinion, the Court included a statement about jury trials that is no longer accurate. States are required to provide trial by jury for crimes punishable by more than six months’ imprisonment. See *Duncan v. Louisiana*, 391 U.S. 145 (1968). In 1936, the Supreme Court had not yet “incorporated” many provisions from the Bill of Rights against the states, meaning that the states were free to ignore them. For purposes of this course, students should presume that constitutional provisions apply with equal force against the states and the federal government, unless instructed otherwise. One key criminal procedure provision not incorporated is the right to indictment by a grand jury. See *Hurtado v. California*, 110 U.S. 516 (1884). In *Timbs v. Indiana*, 139 S. Ct. 682 (2019), the Court unanimously held that the Excessive Fines Clause of the Eighth Amendment is incorporated against the states. In *Ramos v. Louisiana*, 140 S.Ct. 1390 (2020), the Court held that the Sixth Amendment requires

states use only a unanimous jury verdict to convict defendants of serious offenses, setting aside a conviction based on a 10-to-2 vote. This continues the decades-long trend of incorporating the Bill of Rights through the Fourteenth Amendment.

Students may find one procedural aspect of *Brown* particularly upsetting, in addition to the terrible conduct that agents of the state committed against the defendants: After the defendants were convicted, they appealed to the highest court of their state, and the state court *affirmed the convictions*. Two dissenting members of that court set forth at length the terrible conduct—so carefully that the Supreme Court of the United States would later cut and paste much of the dissent. Whatever one’s position on theories related to federalism, one cannot avoid the conclusion that at least in this case, a state’s justice system was sorely in need of federal supervision. Throughout this course, students will notice an ongoing debate about how much Supreme Court oversight is necessary to protect Americans from police officers, prosecutors, and judges behaving badly. The Court’s assessment has changed over time, and justices serving together often disagree.

What to Look for when Reading Cases

As the semester progresses, students will learn to answer two key questions presented in every single criminal procedure case: First, were someone’s rights (usually constitutional rights) violated? Second, if so, so what?

Answering the first question requires knowledge of the Supreme Court’s decisions interpreting the Fourth, Fifth, and Sixth Amendments to the Constitution, among other provisions. For example, the Court has considered over several cases—decided over several decades—what counts as a “search” for purposes of the Fourth Amendment. It has debated what the Due Process Clauses of the Fifth and Fourteenth Amendments require of police officers conducting interrogations. And it has weighed how to protect the right to counsel guaranteed by the Sixth Amendment to all criminal defendants.

Answering the second question—“So what?”—requires knowledge of the remedies the Supreme Court has provided for violations of the rights of criminal suspects and defendants. For a defendant, the most desirable remedy is often the exclusion of evidence obtained illegally. When the “exclusionary rule” applies, evidence gained during an unlawful search or interrogation, for example, may become unavailable to prosecutors, which may lead to the dismissal of criminal charges. The proper scope of the exclusionary rule has been hotly debated for decades, and even its existence is not taken for granted by everyone on the Supreme Court. When exclusion of evidence is not available, the best remedy may be money damages, although that remedy has its own shortcomings. Students will learn the basics of when various remedies are available for violations of criminal procedure rules.

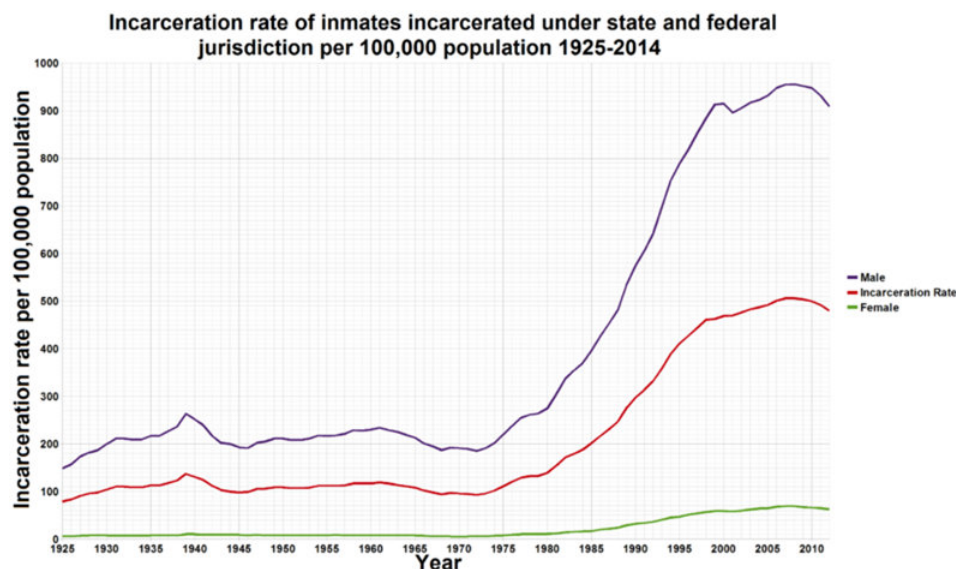
In a sense, the rules governing searches, seizures, interrogations, and so on can be considered the “substantive” law of criminal procedure. These rules constitute the bulk of most criminal procedure courses, and this one is no exception. Questions in this category include: When do police need a warrant? When must police give “*Miranda* warnings”? What must states provide for criminal defendants too poor to hire a lawyer?

The remedies are what one might call the “procedural” aspect of criminal procedure law. Questions in this category include: If police executing a search warrant break down someone’s door without justification, can the homeowner exclude evidence found during the ensuing search? Does the answer change if the warrant was somehow defective? When can prosecutors use confessions obtained in violation of the *Miranda* Rule? The portion of assigned readings explicitly devoted to remedies is far less than that given to “substantive” criminal procedure rights. Keep in mind, however, that rights without remedies are largely worthless,² and those students who one day prosecute crimes or represent defendants will care deeply about the practical consequences of Supreme Court doctrine.

The Scope of the Criminal Justice System

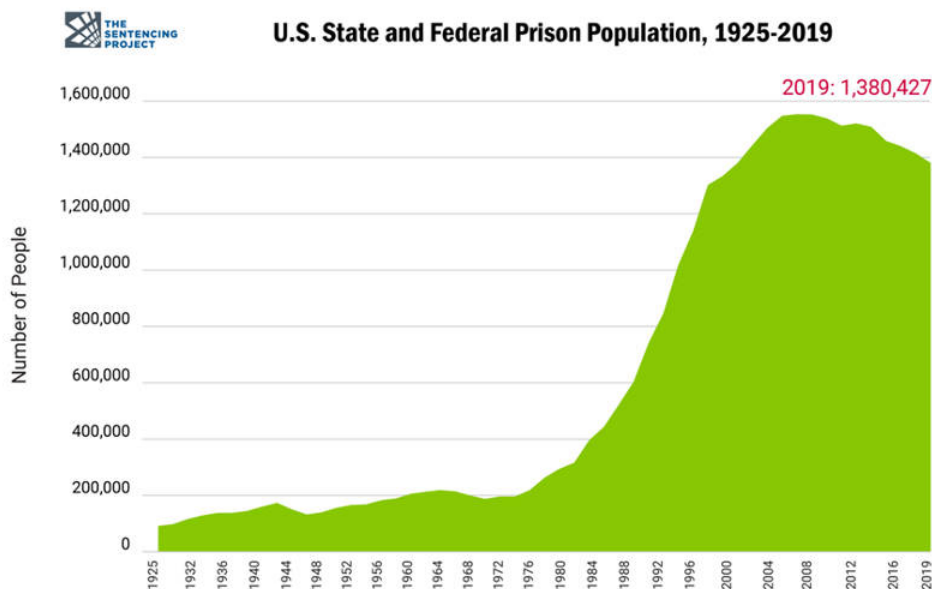
Before returning to the meat of criminal procedure law, let us consider for a moment just how large and important a system is being governed by nine Justices interpreting a handful of ancient clauses.

Beginning around 1970, the United States began a massive increase in incarceration. Between 1980 and 2010, the incarceration rate more than doubled. Despite a small drop in incarceration over the past decade, as of early 2022 the United States incarcerated about 2 million people, including inmates at prisons, local jails, and juvenile facilities, among other places. This chart (released to the public domain [via Wikimedia Commons](#)) shows how the incarceration rate (essentially, the number of inmates per 100,000 U.S. residents) was relatively flat for decades through the 1960s, began rising after 1970, and then increased rapidly after 1985. The rate has decreased slightly over the past few years.



The U.S. 2021 incarceration rate was 664 per 100,000 residents, exceeding every other country in the world. The states with the highest incarceration rates in 2021 were Mississippi (1,031), Louisiana (1,094), and Oklahoma (993). The states with the lowest rates were Rhode Island (289), Vermont (288) and Massachusetts (275). Even these states have higher incarceration rates than most countries, including Iran (228), South Africa (248), Israel (234), New Zealand (188), Singapore (185), Poland (188), Jamaica (137), Iraq (126), France (93), and Ireland (72).³

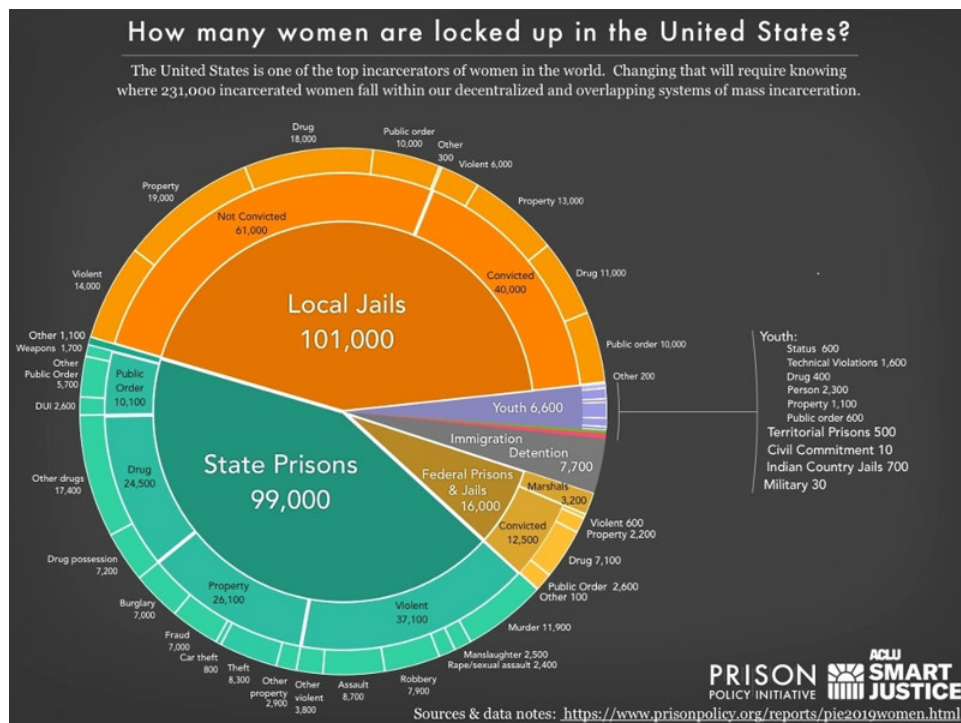
The next chart (provided courtesy of [The Sentencing Project](#)) shows the raw numbers of prisoners in America. Note that this does not include inmates in jails or juvenile facilities.



Nationwide, the total prison and jail population as of December 31, 2020 was 1,691,600.⁴ In addition, 3,890,400 persons were under supervision—on parole or probation—creating a total correctional system population of 5,500,600.

Because states house the overwhelming bulk of U.S. prisoners, state budgets fund the overwhelming bulk of U.S. correctional expenses. In 1985—just before the American prison population began its sharp increase—states spent a combined \$6.7 billion on corrections. By 1990, the cost had risen to \$16.9 billion. It was \$36.4 billion in 2000, \$51.4 billion in 2010, and \$56.6 billion in 2019.⁵

The next chart (provided courtesy of [the Prison Policy Initiative](#)) shows where incarcerated women are housed and what offenses led them to confinement.



[The PPI also has a chart entitled “[The Whole Pie](#),” which covers *all* incarcerated persons, male and female. Although we lack permission to include the chart in this book, students may (and should) find it [online](#).]

The likelihood of imprisonment is not distributed evenly among different groups of Americans. Women constitute about half of the total U.S. population but only 7 percent of the total prison population. Racial disparities are also stark. In 2020, state and federal prisons housed (out of a total of 1,182,166 inmates) 389,500 Black inmates (33 percent of the total), 358,900 white inmates (30 percent of the total), and 275,300 Hispanic inmates (23 percent of the total).⁶ According to Census data taken around the same time (April 1, 2020), 76 percent of Americans described themselves as white alone (no other race), 13 percent as Black or African American alone, 3 percent as two or more races, and 18.5 percent as Hispanic or Latino.⁷ Although the demographic definitions—particularly for deciding who counts as Hispanic—used in various surveys are not always identical, the results are clear. Black and Hispanic Americans are significantly overrepresented among prisoners.

Despite the high U.S. incarceration rate, most Americans will never serve time. Instead, the majority of Americans encounter the justice system through their interactions with police officers. U.S. law enforcement agencies employ about 665,000 officers at the local, state, and federal level. That works out to about one officer for every 500 Americans. In 2019, officers performed about 10 million arrests. As was noted for incarceration, arrest rates exhibit disparities by race and sex. Of those arrested in 2019, 69.4 percent were white, and 26.6 percent were black. Males constituted 72.5 percent of those arrested in 2019. Young men are especially likely to be arrested.⁸

When suspects are arrested and prosecuted, states often provide legal counsel because the defendants otherwise could not afford it. The per capita expense on indigent defense varies tremendously among states. For example, in 2017 Wisconsin spent \$86 million, or \$14.83 per resident. That same year Texas spent \$37 million, or \$1.31 per resident.

A Few Recent Cases

We will return now to the discussion we set aside after reading *Brown v. Mississippi*.

“Yes, yes,” one might say, “the criminal justice system is important. As a nation we spend immense sums on police, prosecution, and prisons. And back in 1934, some goons in Mississippi abused criminal defendants, which required intervention by the Supreme Court. What about today?”

This is a fair question; otherwise, we would not have placed it in the mouths of our hypothetical students. We expect that by the end of the semester, few if any students will question whether police and prosecutors still require judicial oversight. The amount and proper form of that oversight will almost surely remain contested—indeed, the Justices themselves contest these issues every year—but the principle is likely to win near unanimous assent. To assuage skepticism without delay, however, we will present some evidence now.

In 2013, the State of California freed Kash Delano Register, whom the state had imprisoned for 34 years for a murder he did not commit.⁹ Mr. Register had been convicted on the basis of false identification testimony, and the lawyers who won his release produced proof that police and prosecutors had concealed from Register’s trial defense team evidence of his innocence, including reports of eyewitnesses who would have contradicted the testimony of prosecution witnesses, along with evidence of how police had used threats of unrelated criminal prosecution to pressure the witnesses against Register. Absent the work of students and faculty at Loyola Law School in Los Angeles, Register might remain incarcerated today. Prosecutors opposed his release until 2013. In 2016, the Los Angeles City Council approved a \$16.7 million settlement payment to Register.¹⁰ The city has paid tens of millions of dollars in other recent settlements related to police conduct.¹¹

In 2012, the State of Missouri released George Allen, Jr., whom the state had imprisoned for 30 years for a St. Louis rape and murder he did not commit.¹² Although prosecutors could not explain how Allen could have travelled from his University City home to the murder scene—St. Louis was paralyzed that day by a 20-inch snowstorm—a jury eventually convicted Allen on the basis of his confession. Decades after his conviction, new lawyers for Allen—from the Bryan Cave law firm and the Innocence Project—produced evidence that police had elicited a false confession from Allen, who was mentally ill. Missouri courts found that prosecutors withheld exculpatory evidence, including lab results, fingerprint records, and information about bizarre interrogation tactics such as hypnosis of a key witness. Allen died in 2016, and the City of St. Louis and Allen’s family settled his civil rights lawsuit in 2018 for \$14 million.

The National Registry of Exonerations, maintained by the University of Michigan, lists 3,176 exonerations, representing “more than 27,200 years lost.”¹³ Because it covers only exonerations, it does not include cases in which misconduct is uncovered in time to prevent a wrongful conviction.

In 2015, the *Wall Street Journal* reported that America’s “10 cities with the largest police departments paid out \$248.7 million” in 2014 in settlements and court judgements in police misconduct cases.¹⁴ Students should keep in mind that because so much misconduct cannot be remedied through monetary damages, numbers like these understate the problem.

Chicago has settled several multi-million-dollar cases in recent years. Examples include: “A one-time death row inmate brutally beaten by police: \$6.1 million. An unarmed man fatally shot by an officer as he lay on the ground: \$4.1 million.”¹⁵ Another involved an officer who “posted messages on his Facebook page falsely calling [a] teen a drug dealer and criminal” and officers handcuffing this same teen without cause. (Settlement around \$500,000.) More recent cases include “a police officer [who] pointed a gun at [the plaintiff’s] 3-year-old daughter’s chest during a 2013 raid of the family’s Chicago home” and a man who spent about 20 years in prison after being framed.¹⁶

As the *Baltimore Sun* noted—in its 2014 report of how the “city has paid about \$5.7 million since 2011 over lawsuits claiming that police officers brazenly beat up alleged suspects”—the “perception that officers are violent can poison the relationship between residents and police.”¹⁷ The newspaper observed:

“Over ... four years, more than 100 people have won court judgments or settlements related to allegations of brutality and civil rights violations. Victims include a 15-year-old boy riding a dirt bike, a 26-year-old pregnant accountant who had witnessed a beating, a 50-year-old woman selling church raffle tickets, a 65-year-old church deacon rolling a cigarette and an 87-year-old grandmother aiding her wounded grandson.”

In multiple jurisdictions, class action lawsuits about unlawful strip searches have yielded large payments. In 2010, the Cook County (Illinois) Board of Commissioners agreed to a \$55 million settlement with suspects stripped-searched at Cook County Jail. New York City reached a \$50 million settlement in 2001 and another one for \$33 million in 2010, both related to searches in city jails such as Rikers Island. Similar settlements (for smaller amounts) have been reached in places such as Kern County, California; Burlington County, New Jersey; and Washington, D.C. Massachusetts officials settled a suit concerning the Western Massachusetts Regional Women’s Correctional Center, agreeing to prohibit male guards from continuing their practice of videotaping the strip searches of female inmates.

Less sensational issues (nonetheless important to those involved) include the ongoing debate over “stop-and-frisk” tactics nationwide, in addition to racial profiling of motorists. These practices affect persons whose involvement with the criminal justice

system might otherwise be fairly minimal. In New York City, a federal court found that NYPD officers violated the Fourth Amendment by performing unreasonable searches and seizures and further found that police violated the Equal Protection Clause of Fourteenth Amendment by stopping and frisking New Yorkers in a racially discriminatory manner.¹⁸ In Missouri, annual reports by the Attorney General regularly find racial disparities in vehicle stops.¹⁹ According to the 2017 report, Black motorists were far more likely to be stopped, despite police finding contraband less often when stopping Black motorists than when stopping white motorists. “African-Americans represent 10.9% of the driving-age population but 18.7% of all traffic stops The contraband hit rate for whites was 35.5%, compared with 32.9% for blacks and 27.9% for Hispanics. This means that, on average, searches of African-Americans and Hispanics are less likely than searches of whites to result in the discovery of contraband.”

In sum, the incidence of police and prosecutorial misconduct is not limited to dusty case files from the old Confederacy.

Meanwhile, crime remains a serious problem, one America has struggled with since colonial times. Since the 1800s, the United States has had a much higher murder rate than European countries otherwise similar to us in measures of economic power and educational attainment. Then, beginning around 1965, the U.S. homicide rate increased dramatically.²⁰ Although the increase was not uniform (different decades saw different trends, and different locations experienced trends differently), the United States as a whole suffered a big increase in crime from the mid-1960s through the early-1990s, with the nationwide homicide rate peaking at around 10 per 100,000 persons. Since then, crime has dropped significantly, returning over twenty years to what was observed in the early 1960s.²¹ By 2000, the homicide rate had dropped to around 5.5 per 100,000, which is close to the rates observed over the subsequent two decades.²² (Time will tell whether the [rising homicide rates observed](#) during 2020 and 2021—that is, during first years of the COVID pandemic—represent an aberration or a new normal.) In other words, American crime rates remain well above those of Western Europe, Canada, and Australia, but they are far better than American rates of a generation ago. The sharp increase in crime between the 1960s and 1990s may explain in part the rapid increase in American incarceration, as politicians offered “tough-on-crime” solutions. The causes of the huge increase in crime beginning around 1965, as well as of the subsequent decrease, are hotly disputed.²³ In any event, crime remains an important political and social issue in America. Court decisions about how police may behave will be better understood if given broader social context. For example, judicial decisions that prevent the convictions of undisputedly guilty defendants may be unpopular among voters, and voters elect the politicians who appoint and confirm Supreme Court Justices. Further, Justices may recognize their relative lack of expertise in the fields of policing and criminology, and they may hesitate to mandate practices (or to prohibit practices) without thoughtfully considering how their decisions could affect ongoing national efforts to fight crime. The debate over how much the Court should meddle in the affairs of police departments is a thread that runs through the course material.

Outline of the Book

After the first chapter, the book will proceed as follows: First, we will examine the Fourth Amendment, beginning with considering what counts as a “search” in Fourth Amendment cases. After studying the concepts of probable cause and reasonable suspicion, we will discuss warrants, including what police must do to obtain them, when they are required, and when the Supreme Court has said police may conduct searches and seizures without warrants. Having spent about a third of the book on searches, we will turn to seizures, including arrests and “stop and frisk.”

Around the halfway point of the book, we will move from the Fourth Amendment and begin our study of interrogations, examining how the Court has used the Fifth, Sixth, and Fourteenth Amendments to regulate police questioning of suspects. This portion of the book will cover the Due Process Clauses, the *Miranda* Rule, and regulations arising from the right to counsel.

Having studied “substantive” criminal procedure rules at some length—learning what the Court has told police officers they can and cannot do—we will turn to the remedies available when these rules are broken. Primarily, we will focus on the exclusionary rule, a judicially-created remedy that prevents prosecutors from using certain evidence obtained illegally. We will also consider when money damages are available as a remedy for violations of criminal procedure rules.

Near the end of the book, we will study the criminal defendant’s right to the assistance of counsel, which is guaranteed by the Sixth Amendment. In particular, we will learn when the state must provide counsel and how effective counsel must be to satisfy the constitutional guarantee.

Then we will study identification procedures, including how police can avoid mistaken identifications by victims and other witnesses, along with the limited requirements that have been imposed by the Supreme Court.

As the book ends, we will consider some new challenges presented by terrorism, such as torture, and by technological advances, such as electronic surveillance.

A Note on the Text

Universities exist to promote the search for knowledge and to transmit human knowledge to future generations. Public universities in particular have a tradition of sharing knowledge with the broader populace, not merely their own students, and they also have a tradition of providing excellent education at affordable prices. This book exists to further these important missions of the University of Missouri. Designed by MU professors, it suits the pedagogical preferences of its authors. Available at no cost, it reduces students' cost of attendance.

In addition, this book is available under a Creative Commons license, meaning that anyone—inside or outside the university—can use it to study criminal procedure and can share it at will. Faculty at other universities are free to adopt it, and some have done so.

The project was inspired, in part, by an article one of your authors published in 2016, calling on law schools and law faculty to create free casebooks for students.²⁴ It turned out that calling upon others to create books did not in itself produce these books. Your authors have since become the change they wished to see in legal education. Because the book is relatively new—and is the first casebook produced by either of your authors—student feedback is especially welcome. Future students will benefit from any improvements.

To increase the book's value as a free resource, the text when possible contains links to sources at which students can learn more at no cost. For example, Supreme Court cases are freely available online, and anyone who wishes to read the full unedited version of any case may do so. (Even when a link has not been provided, when naming cases we usually have included a full citation, which should allow students easy access to free versions of the text.) Your authors have edited cases so that reading assignments would be kept reasonable for a one-semester course; however, there is always more to learn.

In addition, this book aims to go beyond providing a “nutshell” summary of American criminal procedure law. From time to time, particularly when assigned cases raise issues about which there are important ongoing debates in American society, the readings will investigate these issues in greater depth than might be possible were the text confined to opinions written by Supreme Court Justices. More than one hundred years ago, Roscoe Pound—then dean of the University of Nebraska College of Law, later dean at Harvard—published the great legal realist article “Law in Books and Law in Action.”²⁵ If this book is successful, students will spend time considering the practical effects—the law in action—of the opinions contained in Supreme Court reporters.

The Key Constitutional Language

In this course, students will focus on Supreme Court cases arising from a handful of constitutional provisions. Four Amendments to the Constitution of the United States are reprinted here (three in full, one in part) for your convenience:

Amendment IV

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by Oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

Amendment V

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the Militia, when in actual service in time of War or public danger; nor shall any person be subject for the same offense to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

Amendment VI

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

Amendment XIV

Section 1.

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens

of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

* * *

Savvy students will have noticed that the constitutional provisions reprinted above lack definitions for terms such as “unreasonable,” “search,” “seizure,” “probable cause,” “put in jeopardy,” “due process of law,” “confronted with the witnesses against him,” and “Assistance of Counsel.” The remainder of this book is, essentially, a summary of the Supreme Court’s ongoing efforts to provide the missing definitions.

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1.9: Reading Cases

This page is a draft and is under active development.

You are going to spend much of your time in law school reading cases. You will read to prepare for class, to research for papers, and to enhance your understanding of legal theory. An essential part of reading cases is breaking down a case into its pieces. By dissecting cases and understanding their parts, you will be equipped to create rules, analogize and distinguish cases, and predict and advocate for outcomes in factual scenarios. You will also detect patterns in judicial reasoning and see legal theory put into practice.

When you read a case, you should read with the goal of pulling information from the text. Ask yourself as you read what facts are relevant, what legal arguments are made, and how the facts and the legal arguments fit together. Determine what reasoning the court uses to reach its conclusion and see how the relevant facts and legal arguments fit into that reasoning. If you read passively, just scanning your eyes across the page and failing to engage with what you are reading, then you are wasting your time.

Below are definitions of the parts of a case to help you locate different pieces and to understand each component's role. I have placed them in the order in which you will typically encounter each one while reading an opinion. Be forewarned, however, that there is never a guarantee that each piece will be found in the same place every time. Judicial writing can, at times, leave a lot to be desired in terms of structure.

After you read a case, you will then want to record what you discovered through reading the case. This process is called briefing a case and it will be discussed in the next chapter. As you get to know your professors and what they focus on in class, you might need to shift your reading strategies to ensure you pull out the details that your professor emphasizes.

Caption: Also known as the header; tells you who the parties are in the case, which court the opinion comes from, the date the opinion was issued, and what the case citation is.

Citation: A citation is a unique set of numbers and letters that is assigned to that particular case. Think of it like a barcode. A citation for a case typically comes in this format: ### XXX ####. Back when you had to look up cases in bound book volumes, the XXX would tell you which reporter to look for the case in, and the numbers told you what volume of the case would be and page number the case would be. For instance, if a case citation was 123 S.E.2d 456, then that would mean you should look for the case in the 123rd volume of the second series of the Southeastern Reporter on page 456. You will learn more about this when learning how to "Bluebook." Don't let the upperclassmen fool you. The Bluebook is NOT scary. Once you get the knack of it, plan to tab some commonly used pages and make this dense piece of citation guidance much more approachable.

Facts, Substantive: Facts that the court has decided are relevant or material to its decision-making process. These facts usually include who the parties are, their relationship to each other, and facts that show what the legal dispute is about. A good, quick way to decide if a fact is relevant is to see if it answers part of the issue presented in some way. If the case is about whether there was a signed agreement, then facts surrounding a written document and signatures on the paper will likely be material. Whether the ink used to sign was pink will likely not be material.

Facts, procedural: Facts surrounding how the legal dispute got from its start to where it is now. These facts usually include when the harm occurred, when the lawsuit was filed, and what type of proceedings occurred before the court heard the case.

Issue: What the legal dispute is about. The issue may be presented in question form asking about what the outcome is when the legal rule is applied to the material facts. Identifying the issue makes following the legal arguments, reasoning, and holding easier because you will see what question the court has decided it needs to answer.

Rule Statement/Rule of Law: The legal rule, either from a statute, case, regulation, or some combination, that the court will use to address the legal question.

Standard of Review: This will tell you how much deference the appellate court must give the lower court's decision. We will spend more time on how to use a standard of review when we write briefs.

Reasoning: Also called rationale or application. The reasoning usually makes up the bulk of the opinion and is where the court "shows its work," or explains what sources of law and policy it used to reach the answer to the legal issue. In its reasoning, a court can use statutes, case law, other primary authorities, other secondary authorities, or public policy to support its thought process. If a court is going to rely on precedent or stare decisis, a court will show the precedent on which it is relying and explain why.

Holding: Outcome of the case when the legal rule is applied to the facts of the case. This outcome can serve as precedent in future cases. While this sounds simple, sometimes locating what the court has held can be challenging. “A holding consists of those propositions along the chosen decisions path or paths of reasoning that (1) are actually decided, (2) are based upon the facts of the case, and (3) lead to the judgment. If not a holding, a proposition stated in a case counts as dicta.” Michael Abramowicz and Maxwell Stearns, *Defining Dicta*, 57 Stan. L. Rev. 953, 1065 (March 2005).

Dicta: Anything else that is in the case other than the holding. Dicta does not have any precedential value. It can help you understand why the court made the holding that it did. Sometimes, people will argue over whether something is dicta or a holding. “Statements narrowly tailored to the facts have greater constraining force and approach the status of binding holding. Broader or more general statements have less constraining force and tend to approach dicta.” Andrew C. Michaels, *The Holding-Dictum Spectrum*, 70 Ark. L. Rev. 661, 664 (2017).

Disposition: The procedural outcome of the case. Cases can be **affirmed** (higher court says lower court got it right), **reversed** (higher court says lower court got it wrong and higher court is replacing lower court’s judgment with its own), **vacated** (judgment of the lower court is voided but not replaced with higher court’s judgment), or **remanded** (higher court sends the case back to the lower court to make a new decision in light of higher court’s decision). A case that is vacated will usually also be remanded. Cases can be **affirmed in part and reversed in part** (higher court says lower court got part of it right and part of it wrong).

Opinion, majority: Opinion that states the outcome that is controlling in the case. The holding in this case is the one that determines the legal dispute and that can be used as precedent in the future.

Opinion, concurring: Opinion in which the author agrees with the holding of the case but not with the reasoning that the majority used. If a casebook includes a concurring opinion, read it carefully because it is likely presenting a nuance in the law that your professor will want to discuss

Opinion, dissenting: Opinion in which the author does not agree with the holding of the case and wants to explain why the majority is wrong. If a casebook includes a dissenting opinion, read it carefully because it is likely presenting a counterpoint to the holding in the majority opinion that your professor will want to discuss.

Footnotes or Endnotes: Case citations or substantive comments that the author did not place in the main body of the opinion but that relate to the portion of the case where the footnote or endnote is flagged. You should always read the footnotes. If the author felt strongly enough about what is in the footnote to take the time to format the document to add the footnote, it is important. Further, when you see a footnote or endnote included for a case in one of your textbooks, you absolutely should read the footnote or endnote, because not only did the author of the opinion include it, but the textbook author also independently decided it was important

Conclusion

By practicing categorizing the different parts of a case as you read, you will be preparing yourself to brief cases and also how to locate the different components you will want to use for your legal analysis.

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1.10: Briefing Cases

This page is a draft and is under active development.

What is a Case Brief?

In essence, a case brief is a summary of the key aspects of a judicial in a particular case. Briefing a case allows you to take the information you learned when you read the case and use your own words to explain what happened and why the court decided what it did. But as we will see below, although a case brief is a summary, it requires active engagement with the material and its structure is tailored for comprehension.

Keep in mind what you learned in the [Reading Cases](#) section. Reading a case and briefing a case are two actions that are intertwined and yet separate. Below, we will examine a case brief's contents, why it is important, and how to prepare each section.

The Value of Briefing Cases

Case briefing is a good way to “divide and conquer” a case to discover its true meaning and applicability. Instead of trying to figure this out after reading through a 50-page decision, case briefing requires you to look at each component of the decision separately. The result is a detailed “roadmap” of the legal analysis used by the court to answer the legal questions involved in the case before it. Understanding the court’s analytical process is an important part of understanding the legal significance of the decision.

Anatomy of a Case Brief

As you read a case, you will notice quite a few similarities between the sections of a case brief and the parts of a court decision. Although the definitions are similar, what you do with the information is slightly different.

The case briefing structure we will use in this class has 8 sections:

1. Complete citation of the case being briefed
2. Procedural history
3. Applicable statutes
4. Issues
5. Holdings
6. Facts
7. Reasoning
8. Disposition

Following is a brief (did you get the pun?) description of each section.

Case Name and Citation

The complete and proper name and citation for the case goes at the top of your brief. It will include the name of the case (*italicized*), followed by a citation of all the reporters in which the case is found.^[1] This section matters because:

1. The name the parties and is how you, your professor, and others will refer to this case.
2. The citation identifies who to locate the case (much like a book's "ISBN" and a product's barcode).

Procedural History

The procedural history explains what happened in the lower court(s) and how it reached the case reached this court. It should include only facts regarding court actions, not the substantive facts of the case (i.e., the “story”: the circumstances surrounding the dispute). The substantive facts are address in the Facts section below.

The section who is appealing and why. It explains what the lower court(s) did and why. Again, this section is not about the story of why the case got into the court system in the first place.

Facts

This is the place to summary the substantive facts: This is the story of the case. All court decisions are based on a specific and unique set of facts. Although appellate courts do not decide disputes of facts (that is for the trial courts), the facts provide a context

for the legal questions. The facts tell us what happened to the persons involved in the appeal – the *who*, *what*, *when*, *where*, *why*, and *how* that are the basis of the parties' legal dispute. Like the applicable legal rule(s), the facts are usually quite easy to find because courts often have a “facts” section in the decision.

Note

It is best to wait until you complete the other parts of the brief before finalizing this section. Some facts in a court's explanation of the facts provide context, but courts don't necessarily rely on all of them in their analysis and reasoning. When writing this section last in your final draft, you will have a better understanding of which facts paint the general picture and which facts are *both* legally relevant *and* legally significant to the court.

Applicable Legal Rule(s)

This section tells us which statute(s) if any, the court interpreted or applied in its decision. Usually, it is quite easy to determine which statute(s) to include in this section, because the court tells you in its decision. If the statute is well-written, directly quote it using quotation marks. Include only the words of the statute, and not a statement of how the court interpreted or applied it.

This section is important because it is the reason you are reading the case.

Issue(s)

This section explains the legal questions the court is answering in its decision. What is the legal dispute about? The issue is a combination of the legal standard the court is interpreting and applying (for example, statutory language or other legal standard or precedent) and the facts of the case that are legally relevant facts that are significant (i.e., the facts or circumstances to which the statutory language or other legal standard or precedent is being applied).

The best way to write it is as a question.

✓ Example 1.10.1

Does using a drug-sniffing dog on a homeowner's porch to investigate the contents of the home constitute a "search" within the meaning of the Fourth Amendment?

Holding(s)

In this simplified case briefing structure, the holdings are the direct answer to the questions raised in the issues. No additional explanation is provided. All you need to do is answer the question (“yes” or “no”) and then copy and paste your Issue question, revising the grammar and punctuation of your issue question into a statement, using the same words in roughly the same order.

Reasoning

This is the longest and most important section of the case brief. While the issue and holding sections tell you what the law is, the reasoning section tells you why the law is what it is. How did the court interpret and apply the legal standard(s) to the facts? What tools (dictionaries, other case law, etc.) did the court use to help it interpret and apply those legal standards? How did the court explain or justify the end result? This section combines the applicable statutes, issues, facts, and holdings into a detailed discussion of the court's legal and factual analysis.

Disposition

This section describes the procedural “ending” or resolution of the case. It tells us what the court whose decision we are reading did with the case. Did the court affirm or reverse what happened procedurally in the lower court? In addition to stating whether the reviewing court affirmed or reversed the lower court, it also briefly explains the impact on the parties (for example, the claim was dismissed, or the claim was reinstated). Like the Procedural History section, this section will include very little, if any, of the “story” or “substantive” facts of the case; only procedure is included.

Supplementary Case Briefing Resources

- Nancy Schultz & Louis J. Sirico, Legal Writing and Other Lawyering Skills 23-35 (3d ed. 1998).
 - John C. Dernbach et. al., Practical Guide to Legal Writing and Legal Methods 23-41 (4th ed. 2010).
 - Gertrude Block, Effective Legal Writing 1-12 (5th ed. 1999).
 - Deborah A. Schmedemann & Christina L. Kunz, Synthesis: Legal Reading, Reasoning, and Communication 38-44 (5th ed. 2017).
-

Notes

1. In Wisconsin, this would always include the Wisconsin Reports (Wis. or Wis. 2d) and the Northwestern Reporter (N.W. or N.W.2d). Depending on when the case was decided, you'd also have either a public domain citation or a date parenthetical. ↩

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1.10.1: Annotated Cases and Briefs

This page is a draft and is under active development.

Examine these three cases and their corresponding case brief examples. In these “instructional” versions of the cases, there are expandable icons or boxes where you will find some explanations (e.g., ) and you will see annotated portions highlighted in yellow (click the annotation).

As an introduction to reading and briefing cases, explanatory/instructional annotations are provided within these examples, which include:

- *Florida v. Jardines*;
- *Mills v. City of Overland Park*; and
- *Malley v. Briggs*.

1.10.1.1 Case 1: *Florida v. Jardines*

Supreme Court of the United States

Florida v. Joelis Jardines

133 S. Ct. 1409, 569 U.S. 1 (2013)

What are these names, and why are they in this order?

The portion above is the case's caption. There are a few things to note here. The cases we read are written by [appellate courts](#) (reviewing decisions by courts below them). These are either from (1) an intermediate appellate court (typically referred to as a court of appeals, which reviews cases directly from the trial court)^[1] or (2) a court of last resort (typically referred to as a supreme court).^[2]

Being named before or after the ‘v.’ *does not* indicate whether a party was a plaintiff or a defendant (the party who was sued) in the trial court. Instead, a party named before the ‘v.’ was the “loser” in the lower court. Courts refer to this party as the appellant or the petitioner. A party named after the ‘v.’ was the “winner” in the lower court and is referred to as an appellee or a respondent.

Justice SCALIA delivered the opinion of the Court.

We consider whether using a drug-sniffing dog on a homeowner's porch to investigate the contents of the home is a “search” within the meaning of the Fourth Amendment.

The Issue

The court has now identified the issue.

Identifying the issue immediately when starting the case is good style, but it is not necessarily common. In many cases, the reader must search deeper into the case before the Court identifies the issue it needs to answer. Also, legal issues are frequently comprised of sub-issues; it is good to be aware of that.

I

The Statement of Facts

The court is now going to write about the case's background.

Usually, fairly early on in the case, courts describe most of the key facts that led up to the dispute. Courts vary on how and when they separate particular sections of their opinions. And many times, like here, courts do not label their sections. In this case section “I” is the summary of the background facts leading to the dispute and the procedural history of the case.

Some of these facts are crucial because cases are generally decided based on the unique circumstances that led to each dispute. However, some important facts that do not get mentioned in the "facts" section end up appearing in the court's analysis.

As noted above, courts also explain the procedural history of the case (i.e., how the case got to the court from the trial court level and who won at the court or courts below). This usually occurs after explaining the factual background.

In 2006, Detective William Pedraja of the Miami-Dade Police Department received an unverified tip that marijuana was being grown in the home of respondent Joelis Jardines. One month later, the Department and the Drug Enforcement Administration sent a joint surveillance team to Jardines' home. Detective Pedraja was part of that team. He watched the home for fifteen minutes and saw no vehicles in the driveway or activity around the home and could not see inside because the blinds were drawn. Detective Pedraja then approached Jardines' home accompanied by Detective Douglas Bartelt, a trained canine handler who had just arrived at the scene with his drug-sniffing dog. The dog was trained to detect the scent of marijuana, cocaine, heroin, and several other drugs, indicating the presence of any of these substances through particular behavioral changes recognizable by his handler.

Detective Bartelt had the dog on a six-foot leash, owing in part to the dog's "wild" nature [and had a] tendency to dart around erratically while searching. As the dog approached Jardines' front porch, he apparently sensed one of the odors he had been trained to detect, and began energetically exploring the area for the strongest point source of that odor. As Detective Bartelt explained, the dog "began tracking that airborne odor by ... tracking back and forth," engaging in what is called "bracketing," "back and forth, back and forth." [...] Detective Bartelt gave the dog "the full six feet of the leash plus whatever safe distance [he could] give him" to do this— he testified that he needed to give the dog "as much distance as I can." [...] And Detective Pedraja stood back while this was occurring, so that he would not "get knocked over" when the dog was "spinning around trying to find" the source. [...]

After sniffing the base of the front door, the dog sat, which is the trained behavior upon discovering the odor's strongest point. Detective Bartelt then pulled the dog away from the door and returned to his vehicle. He left the scene after informing Detective Pedraja that there had been a positive alert for narcotics.

On the basis of what he had learned at the home, Detective Pedraja applied for and received a warrant to search the residence. When the warrant was executed later that day, Jardines attempted to flee and was arrested; the search revealed marijuana plants, and he was charged with trafficking in cannabis.

At trial, Jardines moved to suppress the marijuana plants on the ground that the canine investigation was an unreasonable search. The trial court granted the motion, and the Florida Third District Court of Appeal reversed. On a petition for discretionary review, the Florida Supreme Court quashed the decision of the Third District Court of Appeal and approved the trial court's decision to suppress, holding (as relevant here) that the use of the trained narcotics dog to investigate Jardines' home was a Fourth Amendment search unsupported by probable cause, rendering invalid the warrant based upon information gathered in that search.

The Procedural History

The previous paragraph is the procedural history of the case.

We granted certiorari^[3], limited to the question of whether the officers' behavior was a search within the meaning of the Fourth Amendment.

General Note

The previous sentence is an abbreviated version of the issue, which is more clearly stated in the first sentence of this case.

II

The Rules

The portions below highlighted in yellow are statements of the rules of the case that the court will apply to the facts (i.e., the analysis and rationale) to arrive at its outcome.

The Fourth Amendment provides in relevant part that the "right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated." The Amendment establishes a simple baseline, one that for much of our history formed the exclusive basis for its protections: When "the Government obtains information by physically

intruding" on persons, houses, papers, or effects, "a 'search' within the original meaning of the Fourth Amendment" has "undoubtedly occurred." *United States v. Jones*, 565 U.S. 400, 406-407, n. 3 (2012). By reason of our decision in *Katz v. United States*, 389 U.S. 347 (1967), property rights "are not the sole measure of Fourth Amendment violations"—but though *Katz* may add to the baseline, it does not subtract anything from the Amendment's protections "when the Government *does* engage in [a] physical intrusion of a constitutionally protected area." That principle renders this case a straightforward one. The officers were gathering information in an area belonging to Jardines and immediately surrounding his house—in the curtilage of the house, which we have held enjoys protection as part of the home itself. And they gathered that information by physically entering and occupying the area to engage in conduct not explicitly or implicitly permitted by the homeowner.

Note: The Previous Paragraph

The purple highlights in preceding paragraph are pieces of analysis. A legal analysis is the application of a legal rule(s) to the specific facts of the case. In this instance, the court provided some analysis early by telling the reader that the officers' conduct was investigatory and occurring within a constitutionally protected area.

In many cases, courts put all of the legal analysis together in the same section. That didn't happen here.

Other analysis is also peppered throughout the opinion, which again be indicated with purple highlights.

A

The Fourth Amendment "indicates with some precision the places and things encompassed by its protections": persons, houses, papers, and effects. *Oliver v. United States*, 466 U.S. 170, 176 (1984). The Fourth Amendment does not, therefore, prevent all investigations conducted on private property; for example, an officer may (subject to) *Katz* gather information in what we have called "open fields"—even if those fields are privately owned—because such fields are not enumerated in the Amendment's text. *Hester v. United States*, 265 U.S. 57 (1924).

But when it comes to the Fourth Amendment, the home is first among equals. At the Amendment's "very core" stands "the right of a man to retreat into his own home and there be free from unreasonable governmental intrusion." *Silverman v. United States*, 365 U.S. 505, 511 (1961). This right would be of little practical value if the State's agents could stand in a home's porch or side garden and trawl for evidence with impunity; the right to retreat would be significantly diminished if the police could enter a man's property to observe his repose from just outside the front window.

We therefore regard the area "immediately surrounding and associated with the home"—what our cases call the curtilage—as "part of the home itself for Fourth Amendment purposes." *Oliver, supra*, at 180. That principle has ancient and durable roots. Just as the distinction between the home and the open fields is "as old as the common law," *Hester, supra*, at 59, so too is the identity of home and what Blackstone called the "curtilage or homestall," for the "house protects and privileges all its branches and appurtenants." 4 W. Blackstone, Commentaries on the Laws of England 223, 225 (1769). This area around the home is "intimately linked to the home, both physically and psychologically," and is where "privacy expectations are most heightened." *California v. Ciraolo*, 476 U.S. 207, 213 (1986).

While the boundaries of the curtilage are generally "clearly marked," the "conception defining the curtilage" is at any rate familiar enough that it is "easily understood from our daily experience." *Oliver*, 466 U.S., at 182, n. 12. Here there is no doubt that the officers entered it: The front porch is the classic exemplar of an area adjacent to the home and "to which the activity of home life extends." *Ibid.*^[1]

1.10.1.1.1 B

Since the officers' investigation took place in a constitutionally protected area, we turn to the question of whether it was accomplished through an unlicensed physical intrusion.^[1] While law enforcement officers need not "shield their eyes" when passing by the home "on public thoroughfares," *Ciraolo*, 476 U.S., at 213, an officer's leave to gather information is sharply circumscribed when he steps off those thoroughfares and enters the Fourth Amendment's protected areas. In permitting, for example, visual observation of the

home from “public navigable airspace,” we were careful to note that it was done “in a physically nonintrusive manner.” *Ibid.* [Entick v. Carrington](#) (1765), a case “undoubtedly familiar” to “every American statesman” at the time of the Founding^[9], states “the general rule clearly: “[O]ur law holds the property of every man so sacred, that no man can set his foot upon his neighbour’s close without his leave.”[*]^[10] As it is undisputed that “the detectives had all four of their feet and all four of their companion’s firmly planted on the constitutionally protected extension of Jardines’ home, the only question is whether he had given his leave (even implicitly) for them to do so. He had not.”

A license may be implied from the habits of the country,” notwithstanding the “strict rule of the English common law as to entry upon a close.” *McKee v. Gratz*, 260 U.S. 127, 136. We have accordingly recognized that “the knocker on the front door is treated as an invitation or license to attempt an entry, justifying ingress to the home by solicitors, hawkers and peddlers of all kinds.” *Breard v. Alexandria*, 341 U.S. 622, 626 (1951). This implicit license typically permits the visitor to approach the home by the front path, knock promptly, wait briefly to be received, and then (absent invitation to linger longer) leave. Complying with the terms of that traditional invitation does not require fine-grained legal knowledge; it is generally managed without incident by the Nation’s Girl Scouts and trick-or-treaters.^[2] Thus, a police officer not armed with a warrant may approach a home and knock, precisely because that is “no more than any private citizen might do.” *Kentucky v. King*, 563 U.S. 452, 469 (2011).

But introducing a trained police dog to explore the area around the home in hopes of discovering incriminating evidence is something else. There is no customary invitation to do that. An invitation to engage in canine forensic investigation assuredly does not inhere in the very act of hanging a knocker.^[3] To find a visitor knocking on the door is routine (even if sometimes unwelcome); to spot that same visitor exploring the front path with a metal detector, or marching his bloodhound into the garden before saying hello and asking permission, would inspire most of us to—well, call the police. The scope of a license—express or implied—is limited not only to a particular area but also to a specific purpose. Consent at a traffic stop to an officer’s checking out an anonymous tip that there is a body in the trunk does not permit the officer to rummage through the trunk for narcotics. Here, the background social norms that invite a visitor to the front door do not invite him there to conduct a search.^[4]

[...]

Here, [...] the question before the court is precisely whether the officer’s conduct was an objectively reasonable search. As we have described, that depends upon whether the officers had an implied license to enter the porch, which in turn depends upon the purpose for which they entered. Here, their behavior objectively reveals a purpose to conduct a search, which is not what anyone would think he had license to do.

1.10.1.1.2 III

The State argues that investigation by a forensic narcotics dog by definition cannot implicate any legitimate privacy interest. The State cites for authority [our decisions](#)^[11] [that] held, respectively, that canine inspection of luggage in an airport, chemical testing of a substance that had fallen from a parcel in transit, and canine inspection of an automobile during a lawful traffic stop, do not violate the “reasonable expectation of privacy” described in *Katz*.

Just last Term, we considered an argument much like this. *Jones* held that tracking an automobile’s whereabouts using a physically-mounted GPS receiver is a Fourth Amendment search. The Government argued that the *Katz* standard “show[ed] that no search occurred,” as the defendant had “no ‘reasonable expectation of privacy’” in his whereabouts on the public roads, *Jones*, 565 U.S., at 406—a proposition with at least as much support in our case law as the one the State marshals here.^[*]^[12] But because the GPS receiver had been physically mounted on the defendant’s automobile (thus intruding on his “effects”), we held that tracking the vehicle’s movements was a search: a person’s “Fourth Amendment rights do not rise or fall with the *Katz* formulation.” *Jones*, *supra*, at 409. The *Katz* reasonable expectations test “has been added to, not substituted for,” the traditional property-based understanding of the Fourth Amendment, and so is unnecessary to consider when the government gains evidence by physically intruding on constitutionally protected areas. *Jones*, *supra*, at 409.

Thus, we need not decide whether the officers' investigation of Jardines' home violated his expectation of privacy under *Katz*. One virtue of the Fourth Amendment's property-rights baseline is that it keeps easy cases easy. That the officers learned what they learned only by physically intruding on Jardines' property to gather evidence is enough to establish that a search occurred.

[...]

The government's use of trained police dogs to investigate the home and its immediate surroundings is a "search" within the meaning of the Fourth Amendment. The judgment of the Supreme Court of Florida is therefore affirmed.

{% hint style="info" %}

The sentence highlighted in green is the holding.

{% endhint %}

It is so ordered.

Notes

1. For example: [Wisconsin Court of Appeals](#); [U.S. Circuit Courts of Appeals](#).
2. For example: [Wisconsin Supreme Court](#); [U.S. Supreme Court](#).
3. The court is referring to granting the petitioner's writ of certiorari, which is request to an appellate court—usually the U.S. Supreme Court or a state's highest court—asking if the court will hear their case. In most cases, the U.S. Supreme Court and the states' highest courts have the ability to pick and choose what cases they hear. This is called "discretionary review."
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1.10.5: Introduction to Case Briefing

In the next several chapters, you will learn about case briefing. Unfortunately, this term can be confusing. As you probably know from your other legal studies classes, sometimes lawyers file “briefs” with trial courts or appellate courts. These briefs present legal arguments about one or more issues. In contrast, **case briefing** is a tool to help you perform in-depth micro-synthesis on a single case that you have retrieved as a result of your legal research. We used to dissect frogs in high school biology class to see what was inside; with case briefing, you are dissecting a court decision to see what’s inside.

Benefits of Case Briefing

Case briefing is a good way to “divide and conquer” a case to discover its true meaning and applicability. Instead of trying to figure this out after reading through a 50-page decision, case briefing requires you to look at each component of the decision separately. The result is a detailed “roadmap” of the legal analysis used by the court to answer the legal questions involved in the case before it. Understanding the court’s analytical process is an important part of understanding the legal significance of the decision.

How to Read a Case

Before you can effectively brief a case, you’ll need to read it. Sounds simple, right? It is simple once you understand the different parts of a court decision and how they relate to one another.

An essential part of reading cases is breaking down a case into its pieces. By dissecting cases and understanding their parts, you will be equipped to create rules, analogize and distinguish cases, and predict and advocate for outcomes in factual scenarios. You will also detect patterns in judicial reasoning and see legal theory put into practice.

When you read a case, you should read with the goal of pulling information from the text. Ask yourself as you read what facts are relevant, what legal arguments are made, and how the facts and the legal arguments fit together. Determine what reasoning the court uses to reach its conclusion and see how the relevant facts and legal arguments fit into that reasoning. If you read passively, just scanning your eyes across the page and failing to engage with what you are reading, then you are wasting your time.

Below are definitions of the parts of a case to help you locate different pieces and to understand each component’s role. They are listed in the order in which you will typically encounter each one while reading an opinion. Be forewarned, however, that there is never a guarantee that each piece will be found in the same place every time. Judicial writing can, at times, leave a lot to be desired in terms of structure.

Caption: Also known as the header; tells you who the parties are in the case, which court the opinion comes from, the date the opinion was issued, and what the case citation is.

Citation: A citation is a unique set of numbers and letters that is assigned to that particular case. Think of it like a barcode. A citation for a case typically comes in this format: ### XXX ####. Back when you had to look up cases in bound book volumes, the XXX would tell you which reporter to look for the case in, and the numbers told you what volume of the case would be and page number the case would be. For instance, if a case citation was 123 S.E.2d 456, then that would mean you should look for the case in the 123rd volume of the second series of the Southeastern Reporter on page 456.

Facts, Substantive: Facts that the court has decided are relevant or material to its decision-making process. These facts usually include who the parties are, their relationship to each other, and facts that show what the legal dispute is about. A good, quick way to decide if a fact is relevant is to see if it answers part of the issue presented in some way. If the case is about whether there was a signed agreement, then facts surrounding a written document and signatures on the paper will likely be legally significant. Whether the ink used to sign was pink will likely not be legally significant.

Facts, procedural: Facts surrounding how the legal dispute got from its start to where it is now. These facts usually include when the harm occurred, when the lawsuit was filed, and what type of proceedings occurred before the court heard the case.

Issue: What the legal dispute is about. The issue may be presented in question form asking about what the outcome is when the legal rule is applied to the material facts. Identifying the issue makes following the legal arguments, reasoning, and holding easier because you will see what question the court has decided it needs to answer.

Rule Statement/Rule of Law: The legal rule, either from a statute, case, regulation, or some combination, that the court will use to address the legal question.

Standard of Review: This will tell you how much deference the appellate court must give the lower court’s decision.

Reasoning: Also called rationale. The reasoning usually makes up the bulk of the opinion and is where the court “shows its work,” or explains what sources of law and policy it used to reach the answer to the legal issue. In its reasoning, a court can use statutes, case law, other primary authorities, other secondary authorities, or public policy to support its thought process. If a court is going to rely on precedent or *stare decisis*, a court will show the precedent on which it is relying and explain why.

Holding: Outcome of the case when the legal rule is applied to the facts of the case. This outcome can serve as precedent in future cases. While this sounds simple, sometimes locating what the court has held can be challenging. “A holding consists of those propositions along the chosen decisions path or paths of reasoning that (1) are actually decided, (2) are based upon the facts of the case, and (3) lead to the judgment. If not a holding, a proposition stated in a case counts as dicta.” Michael Abramowicz and Maxwell Stearns, *Defining Dicta*, 57 Stan. L. Rev. 953, 1065 (March 2005).

Disposition: The procedural outcome of the case. Cases can be **affirmed** (higher court says lower court got it right), **reversed** (higher court says lower court got it wrong and higher court is replacing lower court’s judgment with its own), **vacated** (judgment of the lower court is voided but not replaced with higher court’s judgment), or **remanded** (higher court sends the case back to the lower court to make a new decision in light of higher court’s decision). A case that is vacated will usually also be remanded. Cases can be **affirmed in part and reversed in part** (higher court says lower court got part of it right and part of it wrong).

Opinion, majority: Opinion that states the outcome that is controlling in the case. The holding in this case is the one that determines the legal dispute and that can be used as precedent in the future.

Opinion, concurring: Opinion in which the author agrees with the holding of the case but not with the reasoning that the majority used. If a casebook includes a concurring opinion, read it carefully because it is likely presenting a nuance in the law that your professor will want to discuss

Opinion, dissenting: Opinion in which the author does not agree with the holding of the case and wants to explain why the majority is wrong. If a casebook includes a dissenting opinion, read it carefully because it is likely presenting a counterpoint to the holding in the majority opinion that your professor will want to discuss.

Footnotes or Endnotes: Case citations or substantive comments that the author did not place in the main body of the opinion but that relate to the portion of the case where the footnote or endnote is flagged. You should always read the footnotes. If the author felt strongly enough about what is in the footnote to take the time to format the document to add the footnote, it is important. Further, when you see a footnote or endnote included for a case in one of your textbooks, you absolutely should read the footnote or endnote, because not only did the author of the opinion include it, but the textbook author also independently decided it was important

By practicing categorizing the different parts of a case as you read, you will be preparing yourself to brief cases and also how to locate the different components you will want to use for your legal analysis.

[Practice your skills by clicking here and reading the *Miller v. Thomack* decision from the Wisconsin Court of Appeals.](#)

Anatomy of a Case Brief

You’ll notice quite a few similarities between the sections of a case brief and the parts of a court decision. Though the definitions are similar, what you do with the information is slightly different. Case briefing allows you to put the information you learned while reading the court decision into your own words to explain what happened and why.

If you Google “how to write a case brief” (don’t do it!) you’ll end up with a lot of different methods, structures and components. Each professor or lawyer has his/her own preferred way of writing a case brief. For this class, we will use a simplified format designed to help you understand what happened to the case procedurally, the legal issues the court addressed, the facts of the case, the legal rule(s) of the case, and the reasoning the court used to arrive at the legal rule(s).

The case briefing structure we will use in this class has 8 sections:

1. Complete citation of the case being briefed
2. Procedural history
3. Applicable statutes
4. Issues
5. Holdings
6. Facts

7. Reasoning
8. Disposition

Following is a brief (did you get the pun?) description of each section.

Complete Citation

The complete and proper citation for the case goes at the top of your brief. It will include the name of the case (*italicized*), followed by a citation of all the reporters in which the case is found. In Wisconsin, this would always include the Wisconsin Reports (Wis. or Wis. 2d) and the Northwestern Reporter (N.W. or N.W.2d). Depending on when the case was decided, you'd also have either a public domain citation or a date parenthetical. If you're unsure of the proper citation form, use your *Bluebook*.

Procedural History

The procedural history tells us what the courts have done with the case so far. It should include only facts regarding court action, not substantive facts of the case. Who are the plaintiff and defendant? Who is appealing and why – what did the lower court(s) do that resulted in a loss for the appellant? This section will include very little, if any, of the “story” or “substantive” facts of the case; only procedure is included.

Applicable Statute(s)

This section tells us which statute(s) if any, the court interpreted or applied in its decision. Usually, it is quite easy to determine which statute(s) to include in this section, because the court tells you in its decision. If the statute is well-written, directly quote it using quotation marks. Include only the words of the statute, and not a statement of how the court interpreted or applied it.

Issue(s)

Here we explain the legal questions the court is answering in its decision. What is the legal dispute about? The issue is a combination of the legal standard being interpreted and applied (for example, the statutory language) and the legally significant facts of the case (the facts or circumstances to which the statutory language or other legal standard is being applied). The best way to write it is as a question.

Holding(s)

In this simplified case briefing structure, the holdings are the direct answer to the questions raised in the issues. No additional explanation is provided. All you need to do is answer the question (“yes” or “no”) and then copy and paste your issue question, revising the grammar and punctuation of your issue question into a statement, using the same words in roughly the same order.

Facts

This is the place to tell the story of the case. All court decisions are based on a certain set of facts. Although appellate courts do not review issues of fact, the facts provide a context for the legal questions. The facts tell us what happened to the persons involved in the appeal – the Who, What, When, Where, Why, and How that are the basis of the parties’ legal dispute. Like the applicable statute(s), the facts are usually quite easy to find because courts often have a “facts” section in the decision.

Reasoning

This is the longest and most important section of the case brief. While the issue and holding sections tell you what the law is, the reasoning section tells you why the law is what it is. How did the court interpret and apply the legal standard(s) to the facts? What tools (dictionaries, other case law, etc.) did the court use to help it interpret and apply those legal standards? How did the court explain or justify the end result? This section combines the applicable statutes, issues, facts, and holdings into a detailed discussion of the court’s legal and factual analysis.

Disposition

This section describes the procedural “ending” or resolution of the case. It tells us what the court whose decision we are reading did with the case. Did the court affirm or reverse what happened procedurally in the lower court? In addition to stating whether the reviewing court affirmed or reversed the lower court, it also briefly explains the impact on the parties (for example, the claim was dismissed, or the claim was reinstated). Like the Procedural History section, this section will include very little, if any, of the “story” or “substantive” facts of the case; only procedure is included.

Case Briefing Tips

Case briefing is one of those tools that “you get out of it what you put into it.” The more time you spend on the case brief, and the more detail you provide, the easier it will be to use it for macro-synthesis and for writing your legal research memorandum. Here are some tips for effective case briefing:

- Read through the entire court decision at least once before starting your case brief
- During your second (and subsequent) read-through, use highlighters to mark the parts of the court decision that will go into the different sections of your case brief. Develop a system of consistently using different colors for each section (for example, yellow for procedure, green for facts, etc.)
- Use your own words when writing your case brief. Copying and pasting from the court decision may seem quick and easy, but it defeats the purposes of writing the case brief in the first place. Using your own words benefits you by
 - Keeping you actively engaged in the process of synthesizing the decision
 - Enhancing your understanding of the decision
- Be detailed rather than summarizing, especially when it comes to the Facts and Reasoning sections. Including lots of details benefits you by
 - Making it easier for you compare what happened in the decision to the client’s facts and legal questions
 - Making macro-synthesis becomes much easier because it’s easier to see the differences (or similarities) in facts, rules (holdings), and reasoning between several cases relating to a single legal issue.

In the next several chapters, you’ll learn how to draft each section of a case brief.

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1.11: New Page

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A **legal reader** is a person who has received legal training. The most common type of legal reader we think of is a judge; other types of legal readers include attorneys, law professors, and law students. For your first year of law school, the types of documents you write are typically aimed at legal readers, and below we will discuss commonalities in legal readers that you should remember when you are writing. However, keep in mind that all audiences, and not just legal readers, value many of these same attributes when reading written works.

When a person reads legal writing, that person is most often looking for an answer to a legal issue. The writer's focus, then, should be on providing a document that makes it as easy as possible for the reader to find what they are looking for. When the reader feels comfortable while reading something, they are more likely to give credibility to the author and assume that what the author (you!) is saying is correct.

Legal writing is a type of technical writing. Michael J. Higdon, [The Legal Reader: An Exposé](#), 43 N.M. L. Rev. 77, 80 (2013). Higdon describes ten attributes that define technical writing, listed below:

1. Pertains to a technical subject
2. Has a purpose
3. Has an objective
4. Conveys information/facts/data
5. Impersonal
6. Concise
7. Directed
8. Performed with particular style and in a particular format
9. Archival
10. Cites contributions of others

Id. This list also describes what your legal reader is looking for when reading your work. You should keep these attributes in mind when you are writing and endeavor to include all of them in your finished product.

Now that we have defined a legal reader and their expectations when reading your work, let us now look at how to describe the legal reader.

Remember that a legal reader is looking for an answer, which means that you should present your information quickly and easily. In fact, you should state the answer to the legal issue at the beginning and then use the rest of the document to support *why* your answer is correct. Legal writing is not a mystery novel and it is not stand-up comedy, so do not save the identity of the murderer or the punchline until the end of the document.

A legal reader looks for a roadmap at the beginning of a written document. By knowing how the information is going to be presented and in what order, the reader can better follow along with your supporting evidence you provide to back up your answer to the legal issue. Sometimes, a reader will want to skip to a particular section, and the roadmap lets the reader know where in the paper to look for a specific part. Of course, you will have to be sure to follow the roadmap you provide as you move through your writing!

Your overall document should be organized by using conventional legal writing structures, should employ transitions and connectors as you move from step to step, and should use headings and subheadings when they make it simpler for the reader to navigate the document. Additionally, your language should be clear and accessible. This means you should not have grammar errors or typos; you should have strong topic sentences to introduce the ideas in each of your paragraphs; and your sentences should flow easily from one to the next.

Here come the tougher parts about a legal reader. Because the reader is looking for an answer, they want to get to the answer quickly and find the answer during the first (and maybe only) time reading your paper. This has nothing to do with you or not valuing your work. Rather, the reader is using your writing as a tool, and a tool works best when it can be used quickly and efficiently and then put away. This is one of the hardest transitions for students to make. No longer is your writing intended to awe the reader with the novelty of your ideas and the fluidity of your prose. The reader will not sit down with a cup of coffee in hand

and curl up to read your riveting discussion on the thin-skulled plaintiff. Think about how you read your cases for class: you are reading them to understand the concepts, to be able to answer correctly in a cold-call, and to perform well on the exam. The reader of your legal document feels the same when reading your work.

A legal reader also is not likely going to give you the benefit of the doubt. The reader will look for holes in your argument. The reader will also approach your writing with skepticism. Again, this has nothing to do with passing judgment on you as a person. The reader's legal training means testing the conclusions and supporting evidence to determine the soundness of the argument.

Conclusion

Understanding the characteristics of a legal reader allows you to write a document that your audience finds usable. Further, by providing the legal reader what they seek, you increase your credibility with the reader. When the reader can use your work and believes in your credibility, they are more likely to agree with your position.

For Further Reading

Michael J. Higdon, The Legal Reader: An Expose, 43 N.M. L. Rev. 77 (2013).

Bryan A. Garner, Know Thy Reader: Writing for the Legal Audience, Mich. B.J., Nov. 2019, at 46.

Ross Guberman, Judges Speaking Softly What They Long for When They Read, Litigation, Summer 2018, at 48.

Ann Sinsheimer & David J. Herring, Lawyers at Work: A Study of the Reading, Writing, and Communication Practices of Legal Professionals, 21 Legal Writing: J. Legal Writing Inst. 63 (2016).

Andrew M. Carter, The Reader's Limited Capacity A Working-Memory Theory for Legal Writers, 11 Legal Comm. & Rhetoric: JALWD 31 (2014).

Laura A. Webb Why Legal Writers Should Think like Teachers, 67 J. Legal Educ. 315 (2017).

Joe Fore, Why You Should Sweat the Small Stuff: Encourage Students to Eliminate Brown MMs from their Legal Writing, 25 No. 1 Persp: Teaching Legal Res. & Writing 18 (2016).

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CHAPTER OVERVIEW

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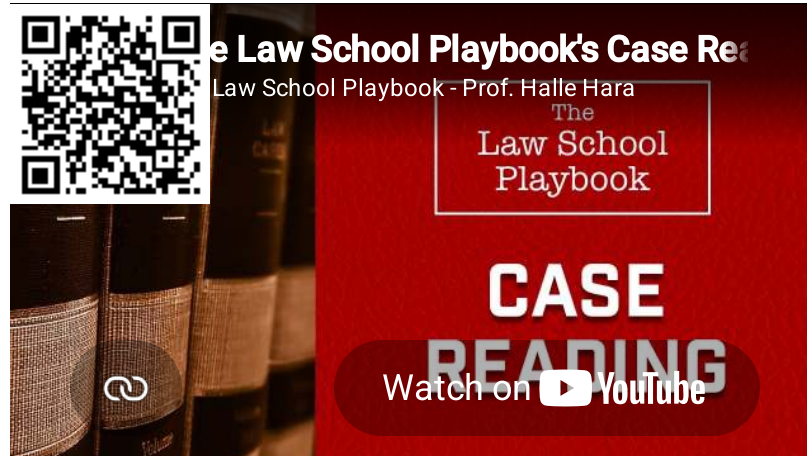
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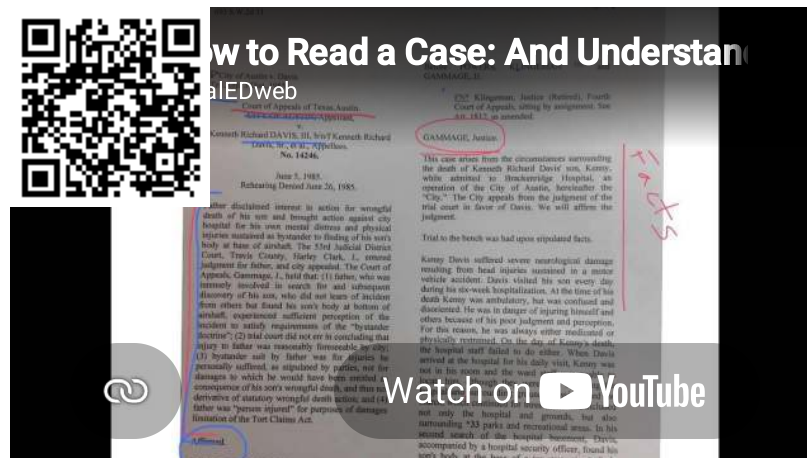
Introduction

Reading Cases



The Law School Playbook's Case Reading by *The Law School Playbook - Prof. Halle Hara*, courtesy of *YouTube*. (Learn how to access the [transcript](#).)

How to Read a Case



How to Read a Case: And Understand What it Means by *LegalEDweb*, courtesy of *YouTube*. (Learn how to access the [transcript](#).)

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B

brief

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Glossary

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affirmed (see also reversed) | the appellate court agreed with the result in the lower court*

appellant (see also petitioner) | the party who appeals a lower court's judgment or order to a higher court to overturn or modify a decision made by the lower court (some courts refer to this party as the petitioner)*

appellee (see also respondent) | the party against whom the appeal is filed and responds to and defends the appeal*

arraignment | the first step in a criminal proceeding where the defendant is brought in front of the court to hear the charges against them and enter a plea*

codified law | generally, law that is published in the form of statutes or government agency regulations; judicial opinions and cases are not considered codified law

coercion | conduct that improperly influences someone else's conduct; admissions or confessions must be voluntary, not coerced

defendant | in criminal cases, the person accused of the crime; in civil cases, the person or entity that is being sued by the plaintiff*

exclusionary rule | a rule in criminal procedure preventing the government from using most evidence gathered as a result of a constitutional violation*

petition | A formal application in writing made to a court or other official body requesting some judicial action*

petitioner | the party who presents a petition to the court; in the context of an appeal, the petitioner is usually the party who lost in the lower court (also referred to as the appellant)*

plaintiff | In a civil matter, the party who initiates a lawsuit (against the defendant)*

reasonable doubt | sufficient doubt on the part of jurors for acquittal of a criminal defendant based on a lack of evidence*

remanded | the appellate court sent the case back to the lower court to conduct further proceedings in light of appellate court's decision; a case that is vacated will usually also be remanded*

respondent | the party against whom a petition is filed (i.e., the party opposing the petitioner/appellant), especially one for the purposes of appeal*

reversed (see also affirmed) | the appellate court agreed with the result in the lower court*

vacated | the appellate court ordered the lower court to set aside or annul the lower court's judgment or order*

writ of certiorari | an order to a lower court to deliver its record in a case so that the higher court may review it (often abbreviated as "cert.")*

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